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No. OFFICE OF THE CLERK

IN THE
Supreme Court of the United States
OCTOBER TERM, 1994

RONALD W. ROSENBERGER, *et al.*,
Petitioners,

v.

THE RECTOR AND VISITORS OF THE
UNIVERSITY OF VIRGINIA, *et al.*,
Respondents.

Petition for Writ of Certiorari to the
United States Court of Appeals
for the Fourth Circuit

PETITION FOR WRIT OF CERTIORARI

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101 pp

QUESTION PRESENTED

Whether the Establishment Clause compels a state university to exclude an otherwise eligible student publication from participation in the student activities fund, solely on the basis of its religious viewpoint, where such exclusion would violate the Speech and Press Clauses if the viewpoint of the publication were nonreligious.

LIST OF PARTIES

Pursuant to Supreme Court Rule 14.1(b), the parties to this proceeding are:

Petitioners:

Ronald W. Rosenberger, as a member of Wide Awake Productions and as Editor-in-Chief of *Wide Awake* magazine;¹ Gregory W. Mourad; and Robert J. Prince.²

Respondents:

The Rector and Visitors of the University of Virginia; Edward E. Elson; W.L. Lyons Brown, Jr.; Robert G. Butcher, Jr.; N. Thomas Connally, M.D.; Hovey S. Dabney; Waller H. Horsley; J. Thomas Hulvey, M.D.; Evans B. Jessee; Patricia M. Kluge; Arnold H. Leon; Leigh B. Middleditch, Jr.; Elizabeth D. Morie; Freddie W. Nicholas, Sr.; S. Buford Scott; Jessie B. Wilson, III; Thomas E. Worrell, Jr.; Adam S. Arthur; Alexander G. Gilliam, Jr.³; and Ronald J. Stump.⁴

¹ Wide Awake Productions is an unincorporated Contracted Independent Organization of the University of Virginia which publishes *Wide Awake* magazine. It has no parent companies or subsidiaries.

² Petitioners Rosenberger, Mourad and Prince sued below both on their behalf and on behalf of other students at the University of Virginia similarly situated.

³ Petitioners sued the foregoing individual respondents in their official capacities as members of the Rector and Visitors of the University of Virginia.

⁴ Petitioners sued respondent Stump in his capacity as Associate Dean of Students of the University of Virginia and Chairperson of the Student Activities Committee of the University of Virginia.

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PETITION FOR WRIT OF CERTIORARI

Petitioners Ronald W. Rosenberger, Wide Awake Productions, *Wide Awake* Magazine, Gregory W. Mourad, and Robert J. Prince respectfully petition for a writ of certiorari to review the decision of the Court of Appeals in this case.

OPINIONS BELOW

The opinion of the Court of Appeals (Pet. App. 1a-42a) is reported at 18 F.3d 269. The opinion of the District Court (Pet. App. 43a-58a) is reported at 795 F. Supp. 175.

JURISDICTION

The judgment of the Court of Appeals was entered on March 14, 1994. A timely petition for rehearing with a suggestion for rehearing in banc was denied on May 23,

1994. See Pet. App. 59a-60a. This Court has jurisdiction pursuant to 28 U.S.C. § 1254(1).

CONSTITUTIONAL PROVISIONS AND UNIVERSITY GUIDELINES INVOLVED

In addition to the First and Fourteenth Amendments to the United States Constitution, this case involves the Student Activity Fee Statement of Purpose and Funding Guidelines of the University of Virginia, which are set forth in full at Pet. App. 61a-67a.

STATEMENT OF THE CASE

This case involves the refusal of the University of Virginia to subsidize the printing costs of a student publication, called *Wide Awake*, solely and expressly because the viewpoint articulated by the publication is religious. The court below agreed with the students that the University regulation forbidding funding of religious activities "places a presumptively unconstitutional condition upon access to government benefits in violation of the Free Speech and Press Clause of the First Amendment," but held that this presumptively unconstitutional discrimination is required by the Establishment Clause. Pet. App. 39a. The facts are uncontested.

A. The Student Activities Fund

Through its Student Activities Fund ("SAF" or "Fund"), the University of Virginia supports a "wide variety of student organizations, activities, and publications" (Pet. App. 2a). In academic year 1990-91 (the year this case arose), the University provided funds to 118 student groups, including some 15 student-written and -edited newspapers and magazines, representing a broad range of interests and perspectives. *Id.* at 4a. The Fund is financed by a mandatory student activities fee of \$14 per semester, paid by each full-time student. Petitioners, like other students, are required to contribute to this fund.

Respondents, the Rector and Visitors of the University, exercise legal control and authority over the operation of the Fund. Pet. App. 3a; see Va. Code Ann. § 23-69, *et seq.* (1950). Respondents have delegated authority to allocate SAF monies to the Student Council, an elected student body, subject to review by the University's Student Activities Committee, chaired by a designee of the Vice President for Student Affairs. The decisions of these bodies must be made in accordance with Guidelines established by respondents, which are reproduced in the appendix to this petition, at Pet. App. 61a-67a. This case is a constitutional challenge to one provision of those Guidelines.

To qualify for funding, a student group must first attain the status of a "Contracted Independent Organization" ("CIO"). CIO status is available to any group that is composed in its majority of students, is managed by officers who are full-time students, keeps an updated copy of its constitution on file with the University, and signs an anti-discrimination disclaimer. Pet. App. 2a. CIOs are given access to University facilities, including meeting rooms and computer terminals, as well as the right to apply for student activity funds. The standard CIO agreement states that benefits provided to the group by the University "should not be misinterpreted as meaning that those organizations are part of or controlled by the University, that the University is responsible for the organizations' contract or other acts or omissions, or that the University approves of the organizations' goals or activities." C.A. App. 68, see Pet. App. 2a-3a.

The Guidelines specify certain categories of student activity that are eligible for funding, as well as certain activities and types of organizations that are excluded from eligibility. Among the categories of student activity that "[t]he Rector and Visitors have determined [to be] relate[d] to the educational purpose of the University and thus . . . eligible for funding," are "student news, information, opinion, entertainment, or academic communications

media groups." Pet. App. 61a. The Guidelines prohibit the funding of religious organizations, fraternities, sororities, honor societies, political organizations, and organizations whose membership is exclusionary. A "religious organization" is defined as "an organization whose purpose is to practice a devotion to an acknowledged ultimate reality or deity." *Id.* at 66a. The Guidelines also prohibit funding for the following purposes: payment of honoraria or similar fees, religious activities, social entertainment or related expenses, philanthropic contributions and activities, political activities, or activities that would jeopardize the University's tax exempt status. *Id.* at 62a-63a. A "religious activity" is defined as "an activity which primarily promotes or manifests a particular belief(s) in or about a deity or an ultimate reality." *Id.* at 66a.

Once an activity is deemed eligible for funding, the Guidelines prescribe the following criteria for allocating funds among eligible organizations: the size of the group, the University-wide benefit of the group's activities, and the group's financial self-sufficiency. Pet. App. 63a; 4a & n.2. After an organization is approved for funding, it submits expense vouchers to the Fund, which are paid only upon a determination that the particular expense is permitted. Funds do not go directly to the group. Pet. App. 4a.

During the academic years 1990-91, 343 student organizations qualified as CIOs, of which 135 applied for, and 118 received, student activity funds. Pet. App. 4a. Among the funded organizations were 15 publications, representing a wide range of differing perspectives on issues of concern to the student body. These included *The Declaration*, *Dialogue Magazine*, *The Journal of Law and Politics*, *Loki Science Magazine*, *Oculus*, *Seasons*, *Thoughtlines*, *The University Journal*, *The Virginia Advocate*, the *Virginia Environmental Law Journal*, *The Virginia Literary Review*, and *The Yellow Journal*. Pet. App. 4a n. 3. The record shows that the University funds student organizations that "express a variety of ideological

viewpoints, including but not limited to viewpoints which are inconsistent with or antagonistic to various religious beliefs." C.A. App. 59, ¶ 16.

Among the funded organizations were the Muslim Students Association, the Jewish Law Students Association, and the C.S. Lewis Society. Pet. App. 4a. The Muslim Students Association Constitution states it has the purpose of "promot[ing] a better understanding of Islam to the University Community." C.A. App. 119. Using SAF funds, it publishes a magazine entitled *Al-Salam*, which, according to the group's application, is intended to "focus" on "Muslim attitudes and reactions to current world issues" (Application § 2(a)(iii)), and contains, among other things, discussions of Islamic doctrine.¹ The Jewish Law Students Association By-laws state that its purposes are "[t]o encourage Jewish law students to participate in Jewish activities" and to "be a focal point for Jewish activities at the Law School." C.A. App. 125. The Constitution of the C.S. Lewis Society states that the purpose of the organization is to "promote interest in, and discussion of, various literary, moral, and philosophical topics, with a particular emphasis on the work of the 'Oxford Christians.'" C.A. App. 131. The University has stated that these organizations were funded not as "religious activities," but as "cultural activities." C.A. Br. Univ. 16.

B. Wide Awake Productions

In September, 1990, petitioner Ronald W. Rosenberger, an undergraduate student at the University of Virginia, joined with other University of Virginia students to form Wide Awake Productions. Wide Awake Productions is an unincorporated association with the stated purposes of (1) "publish[ing] a magazine of philosophical and religious expression," (2) "facilitat[ing] discussion which fosters an atmosphere of sensitivity to and tolerance of

¹ A copy of this magazine, as well as one other funded publication, were lodged with the Court of Appeals.

Christian viewpoints,” and (3) “provid[ing] a unifying focus for Christians of multicultural backgrounds.” C.A. App. 95, Pet. App. 5a. Wide Awake Productions publishes *Wide Awake: A Christian Perspective at the University of Virginia*, a nonprofit journal written and edited by student members of the organization. According to the editor’s statement in the first issue, the magazine was started when the founders “realized that none of the fifteen student-run publications at the University provided a forum for Christian expression, and we decided to fill that void.” C.A. App. 70. *Wide Awake* is not affiliated with any religious institution or denomination, and it allows any University student to join, without regard to sex, race, color, or religion. Pet. App. 6a.

As of June, 1992, the group had published three issues of the magazine, which are distributed free of charge to about 5,000 students on the campus of the University of Virginia. These issues form part of the record in this case.² As described in the editor’s statement in the first issue, *Wide Awake* “offers a Christian perspective on both personal and community issues, especially those relevant to college students at the University of Virginia.” *Wide Awake*, Nov./Dec. 1990, at 2. The lead cover story in the first issue was on the subject of racism. Other articles dealt with such subjects as fear of airplane travel, crisis pregnancy, C.S. Lewis’ ideas about evil and free will, a lengthy interview with a professor of economics at the University, and a commentary on Biblical passages regarding the abundant life. The featured article in the second issue was entitled “Homosexuals: Can They Change . . . and Should They?” It also included an interview with a professor of mathematics at the University and articles about the “Price of Freedom,” the importance of foreign missions, and the meaning of a passage in the Gospel of John. *Wide Awake* Mar./Apr. 1991. The

² There is no suggestion of mootness. Wide Awake Productions still exists and still seeks to participate in the Student Activities Fund.

third issue contained articles on eating disorders (entitled “From Calorie to Calvary”), a popular Christian musician, papal teaching on Marxism and the free market, an Augustinian perspective on university pedagogy, and an alumnus’ experiences as a missionary in Moldavia. *Wide Awake*, Sept./Oct. 1991. All of the issues contained book and music reviews and essays about aspects of student life; one included original poetry.

Petitioners do not dispute that *Wide Awake* constitutes a “religious activity” within the meaning of the Guidelines. Pet. App. 7a. As the Court of Appeals noted, the magazine is marked by “unflagging invocation of religious, specifically Christian themes” and “[t]he journal’s pages are pervasively devoted to providing a ‘Christian perspective’ in printer’s ink at the University of Virginia.” *Id.*

C. The University’s Refusal To Fund *Wide Awake*

Soon after its founding, Wide Awake Productions attained CIO status. It is undisputed that it conformed to all applicable, content-neutral funding eligibility requirements, as set out in the Guidelines, other than the prohibition relating to “religious activities.” Specifically, *Wide Awake* falls within the category of a “student news, information, opinion, entertainment, or academic communications media group[],” one of the categories of student activity eligible for funding. In January, 1991, the organization submitted an application for funding in the amount of \$5,862, to cover publishing costs.

On February 26, after examining the content of the first issue of the magazine, the Appropriations Committee of the Student Council denied petitioners’ request. There is no dispute that the Appropriations Committee’s decision was based solely on the content of the publication. Petitioners were sent a letter explaining the basis for the decision:

In reviewing the request by Wide Awake Productions, the . . . Committee determined your organiza-

tion's request could not be funded as it is a religious activity. This determination was made after reviewing your first issue of *Wide Awake*. In particular, the committee noted in your Editor's Letter that the publication was 'a forum for Christian expression' and a means 'to challenge Christians (in how) to live.'

Pet. App. 8a-9a. As the letter indicates, the sole basis for denial was that *Wide Awake* is a "religious activity." At no point has the University claimed that Wide Awake Productions has failed to satisfy any other prerequisite for eligibility for funding.

Wide Awake appealed the denial to the full Student Council on March 3, 1991. It contended that it met all applicable funding guidelines and that the Appropriations Committee's denial of funding on the basis of the magazine's religious perspective violated the Constitution. The Student Council denied the appeal and affirmed the Committee's decision without further comment. C.A. App. 101.

Wide Awake then appealed to the Student Activities Committee, a University committee. On April 15, 1991, in a letter signed by respondent Ronald J. Stump, Associate Dean of Students, the Committee affirmed the denial of funding. Stump wrote:

After reviewing your organization's constitution, copies of the magazine's first two editions, and the arguments presented at last week's appeal by Wide Awake Productions and by [the] Student Council, the Committee determined that the Wide Awake magazine could not be funded as it is a religious activity. In effect, the Student Activities Committee fully supports the decision and reasoning provided to you in the February 26 letter from [the Appropriations Committee].

Pet. App. 9a-10a. This exhausted all internal avenues of appeal within the University.

D. Proceedings in District Court

Wide Awake Productions, *Wide Awake*, and three of its editors and members then filed suit in federal district court, pursuant to 42 U.S.C. § 1983, challenging the University's denial of funding on the basis of the religious viewpoint of their publication. They claimed, *inter alia*, that the University's categorical exclusion of otherwise eligible student publications, solely on the basis of religious perspective, violated their rights to freedom of speech and press, to free exercise of religion, and to equal protection of the law.³ They sought declaratory and injunctive relief prohibiting the University from denying funding on the basis of the content or viewpoint of their publication, and compensatory damages of at least \$5,862, the printing costs of the first issue. Respondents filed an answer maintaining, among other things, that the University's issuance and implementation of the Guidelines is within its broad discretion to allocate funds among student activities, and in the alternative that the University is legally prohibited, under the Establishment Clause, from providing financial assistance to "religious activities" such as *Wide Awake* magazine. C.A. App. 50. The parties filed cross-motions for summary judgment, and agreed, with minor exceptions,⁴ that there were no disputed issues of material fact and that the case was ripe for summary disposition.

On May 20, 1992, the district court granted respondents' motion for summary judgment. The court held, *inter alia*, that application of the Guideline barring any

³ Petitioners also raised issues under Article I of the Constitution of Virginia and the Virginia Act for Religious Freedom, Va. Code Ann. §§ 57-1 to -2, but did not pursue those state law claims on appeal. Pet. App. 10a and 15a.

⁴ Those exceptions had to do with whether, in addition to denying funding, the University refused *Wide Awake* access to certain University facilities. The district court ruled against *Wide Awake* on this claim (Pet. App. 53a n.8), and petitioners did not pursue it on appeal.

funding of "religious activities" did not result in viewpoint or content discrimination against petitioners' speech. Pet. App. 54a. While declining to decide whether the Establishment Clause would force the University to deny funding for petitioners' magazine, the court found that the University's "fear" of violating the Establishment Clause was a sufficient justification for the Guideline:

[E]ven if the plaintiffs were correct in their assertion that funding Wide Awake would not violate Federal or State law, it is not the province of this court to second guess the legal judgments made by the University. So long as the University's Establishment Clause fears are reasonable, the Guideline restrictions must stand. Given the complexity of the law in this regard, this court has little trouble in finding that the Guideline restriction is a reasonable limit to access to funds. Further, the restriction is a reasonable response by the University to prevent excessive entanglement with religion.

Pet. App. 54a. The district court rejected petitioners' free exercise claim on the ground that it did not appear to the court that "any burden of constitutional magnitude" had been imposed on them, and that even if there were a burden on free exercise rights, it would be justified by the compelling state interest of avoiding violation of the Establishment Clause (Pet. App. 57a).⁵ The court rejected petitioners' equal protection claim on the ground that petitioners had made no showing of discriminatory intent.

E. Proceedings in the Court of Appeals

The Court of Appeals reversed the district court's holding that the Guideline against funding "religious activities" does not discriminate on the basis of the content and

⁵ At this point in the opinion, the district court did not explain why it concluded that funding the magazine would violate the Establishment Clause. Earlier in the opinion, it had declined to decide that question. Compare Pet. App. 54a with *id.* at 57a.

viewpoint of the publication; but it affirmed the judgment on the ground that the University has a compelling state interest in avoiding a violation of the Establishment Clause.

The Court of Appeals explained that in "forbidding funding for speech that meets the definition of 'religious activity,' but not for speech of other types, the SAF guidelines discriminate among speech on the basis of its content." Pet. App. 26a. This, the court held, is "presumptively unconstitutional." *Id.* at 39a. Although the government has no affirmative duty to subsidize exercise of a constitutional right, it may not "penalize exercise of constitutional rights by withholding from their possessors an otherwise discretionary benefit." *Id.* at 25a. The Guideline, however, "constitutes precisely such a penalty, because it restrains Wide Awake Productions from gaining access altogether to a funding source generally available to CIOs not engaged in religious expression." It "thus creates an uneven playing field on which the advantage is tilted towards CIOs engaged in wholly secular modes of expression." *Id.* at 26a. Absent "considerations of equal constitutional dignity," the Court of Appeals explained, the Guideline violates the constitutional principle that "when funds are made available to CIOs generally, they must be distributed in a viewpoint-neutral manner." *Id.* at 25a.

The court found, however, that the University's discrimination against religious speech is justified by its "compelling interest in maintaining strict separation of church and state," which is "derive[d]" from the Establishment Clause. Pet. App. 26a-27a; 39a. Applying the three-part test of *Lemon v. Kurtzman*, 403 U.S. 602, 612-13 (1971), the court concluded that inclusion of student publications within the program funded by the Student Activities Fund would violate the "effects" and "entanglement" tests. The court found that inclusion of "a publication so clearly engaged in the propagation of particular religious doctrines" would constitute a "patent Establish-

ment Clause violation." Pet. App. 35a. "It would be difficult to view awarding SAF monies to *Wide Awake* as anything but state sponsorship—and therefore advancement—of religious belief." *Id.* On the other hand, the court was "unpersuaded that the primary effect of the guidelines restrictions, involving as they do only the direct allocation of public monies, would be to inhibit religion." Pet. App. 34a.

Moreover, it was the "entanglement" part of the *Lemon* test that the court found to be "most plainly implicated by this case." Pet. App. 35a. The court acknowledged that state universities "may not discriminate against [religious groups] based on the content of their speech" when "university facilities" are involved, but opined that "[d]irect monetary subsidization of religious organizations and projects . . . is a beast of an entirely different color." *Id.* at 37a (emphasis in original). According to the court, "providing SAF monies to defray the publication costs of *Wide Awake* inevitably would advance *Wide Awake's* Christian mission." *Id.* It would "send an unmistakably clear signal that the University of Virginia supports Christian values and wishes to promote the wide promulgation of such values." Pet. App. 38a. Moreover, "[t]he possibility of a continuing annual appropriation for the benefit of a single religion carries the potential for seriously divisive political consequences at the University of Virginia," which the court stated is "a factor of recurring significance in the Supreme Court's jurisprudence surrounding *Lemon's* 'excessive entanglement' prong." Pet. App. 37a.

In sum, the Court of Appeals held: (1) that the Free Speech and Press Clauses "presumptively" forbid discrimination against an otherwise eligible publication on the basis of its religious viewpoint, (2) that the Establishment Clause requires such discrimination, and—implicitly—(3) that the Establishment Clause trumps the Free Speech and Press Clauses. The court also affirmed the lower court's disposition of petitioners' equal protection claims.

Petitioners filed a petition for rehearing with suggestion for rehearing in banc. The petition was denied on May 23, 1994, Judges Widener, Niemeyer, and Luttig dissenting.

REASONS FOR GRANTING THE PETITION

Last Term, Justice O'Connor stated that this Court "should, in a proper case," reconsider decisions that require discrimination against "religion, religious ideas, religious people, or religious schools," and thus "bring our Establishment Clause jurisprudence back to what I think is the proper track—government impartiality, not animosity, towards religion." *Board of Education of Kiryas Joel v. Grumet*, 114 S. Ct. 2481, 2498 (1994) (O'Connor, J., concurring). See also *id.* at 2505 (Kennedy, J., concurring); *id.* at 2515 (Scalia, J., dissenting). This case provides an ideal opportunity for that reconsideration.

The University of Virginia provides funding on a neutral basis to student activities representing a wide range of opinions—118 organizations in all, including 15 newspapers and magazines. Included among these funded activities are "viewpoints which are inconsistent with or antagonistic to various religious beliefs." C.A. App. 59, ¶ 16. It is not disputed that, but for its religious character, petitioners' magazine, *Wide Awake*, would be eligible for funding under the Guidelines as a "student news, information, opinion, entertainment, or academic communications media group[]." It addresses many of the same subjects (including racism, homosexuality, music, books, and interviews with professors) addressed by other student media. But the University refuses to consider *Wide Awake* for funding, solely because it presents a religious perspective to the students at the University. The Court of Appeals recognized that this explicit discrimination on the basis of viewpoint would violate the Free Speech and Press Clauses if the viewpoint expressed were nonreligious (Pet. App. 26a; 39a); but it held that the Establishment

Clause compels the very discrimination that the other portions of the First Amendment prohibit.

The decision below thus raises two interrelated constitutional questions. First is the relationship between the Establishment Clause and the Free Speech and Press Clauses of the First Amendment: Does the Establishment Clause permit (and even require) discrimination against religious speech that would be unconstitutional in the case of controversial political, philosophical, or other nonreligious perspectives? The second involves the meaning of the Establishment Clause itself: Does the extension of generally available benefits to religious speakers, on neutral terms, along with a broad array of nonreligious speakers, violate the Establishment Clause? On both of these issues, as we will show below, the lower courts are in disarray.⁶

⁶ Petitioners raised their constitutional claim under the Free Exercise and Equal Protection Clauses as well as the Free Speech and Press Clauses, and continue to do so. The Court of Appeals did not address petitioners' free exercise argument, which is based on the University's discrimination against religion. See *Church of the Lukumi Babalu Aye v. City of Hialeah*, 113 S. Ct. 2217 (1993). Instead the court found—inexplicably—that it had been abandoned. Pet. App. 16a n.23. However, it was expressly preserved on appeal. C.A. Br. Pltfs at 18 n.3. The court rejected petitioners' equal protection claim on the ground that petitioners did not allege discriminatory intent. Pet. App. 41a. However, since the students' claim is based on unequal treatment pursuant to an expressly discriminatory classification (not on the differential impact of a facially neutral classification), there is no requirement of a separate allegation regarding the defendants' intent. Cf. *Washington v. Davis* 426 U.S. 229, 240-241 (1976) (requiring proof of discriminatory intent only in the context of a facially nondiscriminatory governmental policy). If this Court affirms the lower court's Speech and Press holdings, and reverses its Establishment holding, it will not be necessary to address these other claims separately. In petitioners' view, each of the relevant constitutional provisions requires the same outcome: the neutral treatment of religious speech. Although this Petition will focus on the Speech and Press Clauses, petitioners wish to preserve each of their constitutional claims.

A. THE COURTS ARE DIVIDED OVER THE SUPPOSED CONFLICT BETWEEN THE ESTABLISHMENT AND FREE SPEECH CLAUSES

It is well established that public universities may not deny funding to student groups or publications on the basis of their viewpoint. The leading case is *Gay & Lesbian Students Ass'n v. Gohn*, 850 F.2d 361 (8th Cir. 1988), in which the University of Arkansas refused to allow a student gay rights group to receive funds from the student activities fund. The Eighth Circuit held this denial of funding unconstitutional, reasoning that "a group has no right to funding; but when funds are made available, they must be distributed in a viewpoint-neutral manner." *Id.* at 366. See also *Brooks v. Auburn University*, 412 F.2d 1171 (5th Cir. 1969) (denial of funding to an anti-war speaker overturned); *Joyner v. Whiting*, 477 F.2d 456, 460 (4th Cir. 1973) (denial of funding to a racist student publication overturned).⁷

Under these precedents, if petitioners produced a magazine addressing such issues as racism, homosexuality, and international events—all subjects of major articles in the

⁷ By the same token, courts have generally rejected the argument that the funding of controversial speakers or activities out of mandatory student activities funds violates the First Amendment rights of dissenting students, so long as the fund supports a "broad spectrum of university life and reasonable representation of the various aspects of student thought and action." *Larson v. Regents of the University of Nebraska*, 189 Neb. 688, 691 (1973). Accord, *inter alia*, *Smith v. Regents of the University of California*, 4 Cal. 4th 843, 860, 16 Cal. Rptr. 181, 844 P.2d 500, *cert. denied*, 114 S. Ct. 181 (1993); *Carroll v. Blinken*, 957 F.2d 991 (2d Cir.), *cert. denied*, 113 S. Ct. 300 (1992); *Galda v. Rutgers*, 772 F.2d 1060 (3d Cir. 1985), *cert. denied*, 475 U.S. 1065 (1986); see generally Note, *Mandatory Student Fees to Support Political Speech at Public Universities*, 103 Yale L.J. 2009 (1994). Some of these decisions have permitted dissenting students to demand refunds of portions of the student activities fee that are used to support the expression of ideological viewpoints with which they disagree. That issue is not raised in this case.

first three issues of *Wide Awake*—from a gay rights, anti-war, or racist point of view instead of their actual Biblical Christian perspective, the University would unquestionably be required to extend them neutral treatment. But because petitioners' speech is religious, according to the University and the Fourth Circuit, a policy of discriminatory exclusion is not only permitted but required. "Because the First Amendment forbids government to promulgate policies 'respecting an establishment of religion,'" according to the court, "government is left no choice but to forswear financial support of the myriad forms of religious endeavor in which a student organization might engage." Pet. App. 38a.⁸

This decision puts the Establishment Clause on a collision course with the rest of the First Amendment. As the court below candidly admitted, the University's policy "creates an uneven playing field on which the advantage is tilted toward . . . wholly secular modes of expression," (Pet. App. 26a), and it "[p]enalizes exercise of constitutional rights" by religious students (*id.* at 25a). It strips religious speakers of the constitutional protection accorded to secular perspectives and points of view. It condones discrimination against—not neutrality toward—

⁸ In fact, as the record shows, the University is not consistent in its treatment of "religious endeavor" but discriminates among the various religious viewpoints represented at the University of Virginia. For example, it funds the Muslim Students Association (including its magazine *Al-Salam*) and the Jewish Law Students Association. The University has defended this discrimination on the ground that these are "cultural" rather than religious groups (C.A. Br. Univ. 16). This appears to be a euphemism for "minority groups." Petitioners have absolutely no objection to the funding of these other organizations; we are delighted that they are permitted to participate in the SAF and believe that they enrich the life of the University community. But serious Christians are a minority at the University, too, and add to the diversity of opinions. The government simply may not allocate its funds so as to favor or disfavor one religion over another. *Everson v. Board of Education*, 330 U.S. 1, 15 (1947); see *Larsen v. Valente*, 456 U.S. 228, 244 (1982); *Kiryas Joel*, *supra*.

religion. But this, the Court held, is what the Establishment Clause requires.

Unfortunately, the decision below is not aberrational. Indeed, last February the Ninth Circuit held, in reasoning similar to that of the district court below, that the University of Hawaii properly excluded religious student groups from eligibility for student activity funds. *Tipton v. University of Hawaii*, 15 F.3d 922 (9th Cir. 1994). Even before these decisions, lawyers and administrators of public universities all too often assumed that the Constitution compels (or at least permits) viewpoint discrimination against religious student speakers. These two recent decisions by federal appellate courts will undoubtedly reinforce and exacerbate that misimpression. If not reviewed and corrected by this Court, the free speech rights of religious students at public universities all over the nation could be imperiled.

Even in the narrow context of public university student activities funds, this case deserves the Court's urgent attention. The question arises at every public university that has a student activities fund and that has students who wish to engage in religiously-oriented speech activities—which is to say, at virtually every public university. Whether a university is now excluding religious expression and thus violating free speech rights (the approach taken by respondents), or whether it is including religious expression and thus facing potential Establishment Clause lawsuits, this is a constitutional issue that will not go away.⁹ University students and administrators alike would gain by authoritative resolution of this recurring and contentious issue.

⁹ In recent litigation, the University of Hawaii at Manoa was first sued by the ACLU demanding that it exclude religious student groups from its student activities funding. After entering into a consent decree to the satisfaction of the ACLU and enforcing it against religious students, the University was then sued by the excluded students. See *Tipton v. University of Hawaii*, 15 F.3d 922 (9th Cir. 1994).

The supposed conflict between Establishment Clause doctrine and the viewpoint-neutral principles of the Free Speech and Press Clauses has divided the courts of appeals in a wide variety of factual contexts. Some courts, like the Fourth Circuit below, hold that the Establishment Clause either permits or compels discrimination against religious speakers that would be unconstitutional if their viewpoint were nonreligious.¹⁰ Other courts, in conflict with the decision below, hold either that the Establishment Clause does not override free speech rights, or that the Establishment Clause is not violated by treating religious speakers in the same way that nonreligious speakers are treated.¹¹ Almost all of these decisions were them-

¹⁰ See, e.g., *Tipton*, *supra*, 15 F.3d at 926 (upholding denial of student activity funds by a public university to a religious student group); *Kaplan v. City of Burlington*, 891 F.2d 1024, 1029 (2d Cir. 1989), *cert. denied*, 496 U.S. 926 (1990) (prohibiting display of a religious symbol on public property that is "indisputably a traditional public forum," noting that under a contrary analysis "public forum doctrine would swallow up the Establishment Clause"); *Smith v. County of Albemarle*, 895 F.2d 953, 959-60 (4th Cir.), *cert. denied*, 498 U.S. 823 (1990) (holding that a display conveying an endorsement of religion must be barred from "an otherwise available public forum"); *Bishop v. Aronov*, 926 F.2d 1066, 1077 (11th Cir. 1991), *cert. denied*, 112 S. Ct. 3026 (1992) (holding that Establishment Clause would override the academic freedom of a public university professor to express religious opinions in the classroom); *Roberts v. Madigan*, 921 F.2d 1047 (10th Cir. 1990), *cert. denied*, 112 S. Ct. 3025 (1992) (resolving "tension" between a public school teacher's "right of expression" and a possible endorsement of religion by forbidding him to read silently from his Bible in the classroom); *Guidry v. Calcasieu Parish School Bd.*, 9 Relig. Freedom Rptr. 118 (E.D. La. 1989), *aff'd sub nom. Guidry v. Broussard*, 897 F.2d 181 (5th Cir. 1990) (forbidding class valedictorian from expressing religious views in graduation speech).

¹¹ See, e.g., *Good News/Good Sports Club v. School District of Ladue*, No. 93-2148, 1994 WL 328572 (8th Cir. 1994) (allowing student religious club access to neutral forum does not violate Establishment Clause); *Fairfax County School Bd. v. Fairfax Covenant Church*, 17 F.3d 703 (4th Cir.), *cert. denied*, 114 S. Ct. 2166 (1994) (holding that a church may not be charged a higher rental for use of a public facility than is charged to a nonreligious

selves split, with distinguished judges on both sides. Thus, in addition to its immediate practical importance to public university administrators and students, this case provides an opportunity for this Court to address and clarify recurring issues of First Amendment law that now perplex and divide the lower courts.

We urge this Court to take this opportunity to make clear, in no uncertain terms, that the Establishment Clause does *not* provide a legitimate (let alone a compelling) justification for denial of what would otherwise be the First Amendment rights of private speakers to be free of viewpoint discrimination. In the words of retired Justice William J. Brennan, the Establishment Clause must not be used "as a sword to justify repression of religion or its adherents from any aspect of public life." *McDaniel v. Paty*, 435 U.S. 618, 641 (1978) (Brennan, J., concurring).

B. THE COURTS ARE DIVIDED OVER THE CONSTITUTIONALITY OF NEUTRAL BENEFITS TO RELIGION

In addition to the conflict between the Establishment Clause and the other provisions of the First Amendment, the decision below raises issues under the Establishment Clause itself. The Court of Appeals held that neutral

organization); *Hedges v. Wauconda Community School District*, 9 F.3d 1295 (7th Cir. 1993) (holding the Establishment Clause does not justify restraints on student distribution of written materials at public school); *Chabad-Lubavitch of Georgia v. Miller*, 5 F.3d 1383, 1394-95 (11th Cir. 1993) (holding, in context of a private menorah display in the state capital, that "[i]n a true public forum, . . . the Establishment Clause cannot be used as a justification for content-based restrictions on religious speech"); *Kreisner v. City of San Diego*, 1 F.3d 775 (9th Cir. 1993), *cert. denied*, 114 S. Ct. 690 (1994) (holding that private groups may display a religious symbol in a public forum); *Americans United for Separation of Church and State v. City of Grand Rapids*, 980 F.2d 1538 (6th Cir. 1992) (same); *Doe v. Small*, 964 F.2d 611 (7th Cir. 1992) (en banc) (same); *McCreary v. Stone*, 739 F.2d 716 (2d Cir. 1984), *aff'd by an equally divided court sub nom. Village of Scarsdale v. McCreary*, 471 U.S. 83 (1985) (same).

funding of *Wide Awake* would both "advance" religion and bring about an excessive "entanglement" between government and religion. The court explained that "it would be difficult to view awarding SAF monies to *Wide Awake* as anything but state sponsorship—and therefore advancement—of religious belief." Pet. App. 35a. Noting that the publication "indefatigably" promotes Christian ideas and beliefs, the court stated that "[u]sing public funds to support a publication so clearly engaged in the propagation of particular religious doctrines would constitute a patent Establishment Clause violation." *Id.*

This approach conflicts with decisions holding that the equal participation of religious speakers in the benefits of a neutral government program is *not* an establishment of religion.¹² The principal difference is one of analytical focus. The Fourth Circuit focused specifically on the religious activity in question, and asked whether aid to that activity would advance religion. See Pet. App. 37a (referring to "a continuing annual appropriation for the benefit of a single religion"). By contrast, courts upholding the participation of religious speakers in public fora or other neutral benefits programs examine the *program as a whole*, and ask whether the government unconstitutionally advances religion by subsidizing a wide range of expressive activities, of which religion is only one. See e.g., *Good News/Good Sports Club*, *supra*, at *9. ("The primary or principal effect of the 1986 Use Policy was not the advancement of religion; rather, the primary effect was to establish a neutral forum for community and student groups to engage in the exchange of ideas."); see also other cases cited in note 11, *supra*.

In addition to conflicting with other lower court decisions, the decision below conflicts in principle with recent opinions of this Court holding that the extension of benefits to a broad class of recipients, religious as well as non-religious, on a neutral basis, does not violate the Estab-

¹² See cases cited in note 11, *supra*.

lishment Clause. See *Lamb's Chapel v. Center Moriches School District*, 113 S. Ct. 2141 (1993); *Zobrest v. Catalina Foothills School District*, 113 S. Ct. 2462 (1993); *Board of Education v. Mergens*, 496 U.S. 226 (1990); *Texas Monthly, Inc. v. Bullock*, 489 U.S. 1 (1989); *Witters v. Washington Dep't of Services*, 474 U.S. 481 (1986); *Mueller v. Allen*, 463 U.S. 388 (1983); *Widmar v. Vincent*, 454 U.S. 263 (1981). In each of these cases, the Court rejected the argument that the Establishment Clause compels the government to exclude religious speakers or organizations from generally available benefits that are extended neutrally, without regard to religion. As stated in *Texas Monthly*, "Insofar as [a] subsidy is conferred upon a wide array of nonsectarian groups as well as religious organizations in pursuit of some legitimate secular end, the fact that religious groups benefit incidentally does not deprive the subsidy of the secular purpose and primary effect mandated by the Establishment Clause." *Id.* at 14-15. See also *Zobrest*, 113 S. Ct. at 2467; *Lamb's Chapel*, 113 S. Ct. at 2148; *Mergens*, 496 U.S. at 252; *Witters*, 474 U.S. at 487-88. Certiorari is warranted to review this conflict between the decision below and this Court's most recent opinions on the issue of benefits to religion.

In all candor, however, we must acknowledge that the decision below, while in conflict with the recent trend of decisions by this Court, finds support in older cases that have never been overruled or adequately distinguished. Instead of emphasizing *neutrality* toward religion, many of the older cases held that public resources must never be used to defray the costs of specifically religious speech, instruction, or activity. See *Hunt v. McNair*, 413 U.S. 734, 743 (1973) (quoted by the court below at Pet. App. 35a) ("Aid normally may be thought to have a primary effect of advancing religion . . . when it funds a specifically religious activity in an otherwise substantially secular setting"); *Lemon v. Kurtzman*, 403 U.S. 602, 619 (1971) ("The State must be certain, given the Religion Clauses, that subsidized teachers do

not inculcate religion." See also *Aguilar v. Felton*, 473 U.S. 402 (1985); *School District of Grand Rapids v. Ball*, 473 U.S. 373 (1985); and *Committee for Public Education v. Nyquist*, 413 U.S. 756 (1973).

Much of the confusion and inconsistency in Establishment Clause jurisprudence comes from vacillation between these two conflicting lines of cases. Thus, according to the court below, the First Amendment requires neutrality with respect to access to public facilities (Pet. App. 36a-37a) and tax benefits (*id.* at 30a n.31), but discrimination with respect to "direct monetary subsidization" (*id.* at 37a; see *id.* at 30a n.31). The court offers no reason for this bifurcation of Establishment Clause doctrine. Apparently, its purpose is to distinguish *Widmar v. Vincent*, *supra* (forbidding discrimination against religious student groups in the use of public university facilities, and rejecting the argument that the Establishment Clause requires such discrimination), and *Texas Monthly*, *supra*, 489 U.S. at 14-15 (allowing tax subsidy of religious publication if it is extended neutrally). Even as a means of distinguishing inconvenient precedents, the court's attempt fails, since *Witters v. Washington Dep't of Services*, *supra*, 474 U.S. at 487-88, expressly upheld the provision of cash money for religious teaching in a religious institution, so long as the aid is "'made available generally without regard to the sectarian-non-sectarian, or public-nonpublic nature of the institution benefitted,' and is in no way skewed towards religion" (quoting *Nyquist*, *supra*, 413 U.S. at 782-83 n.38).

More importantly, the arguments made by the University and the Fourth Circuit in this case are virtually identical to the arguments made by parties in *Lamb's Chapel*, *Mergens*, *Witters*, and *Widmar*, objecting to neutral treatment of religious groups in the cases involving public facilities and tax benefits. In each of these cases, this Court rejected the argument for discrimination against religious speakers and institutions, and it should do so here as well. Here, as in those cases, the claim that

equal access to public benefits "advances" religion (Pet. App. 35a) rings hollow when the same benefits are extended neutrally to all organizations, religious as well as secular, on a neutral basis; and the claim that such neutral treatment conveys an "endorsement" of the recipient's religion (*id.* at 38a¹³) is similarly unfounded. Indeed, by its funding of Islamic and Jewish activities, as well as both conservative and liberal student publications, the University demonstrates that no endorsement of the underlying philosophy of funded groups is intended or understood. By funding some 118 student organizations, of various and conflicting viewpoints, the University conveys only the "message" that it supports a robust exchange of ideas, and "advances" only the rights of students to speak their own minds and to hear a diverse range of opinion.¹⁴ As this Court observed in *Mergens*: "the broad spectrum of officially recognized student clubs . . . , and the fact that . . . students are free to initiate and organize additional student clubs, counteract any possible message of official endorsement or preference for religion or a particular religious belief." *Mergens*, 496 U.S. at 252 (citations omitted). This is particularly true in a University setting, involving a student group tied to no particular church or religious denomination, where the "aid" goes directly to printers and suppliers rather than to the general coffers of the group.

¹³ Although it labeled the argument "entanglement," the Court of Appeals relied heavily on the claim that funding *Wide Awake* would convey an "endorsement" of its religious view. See Pet. App. 38a ("for the University to subsidize its publication would, we believe, send an unmistakably clear signal that the University of Virginia supports Christian values and wishes to promote the wide promulgation of such values"). We contend this analysis is wrong.

¹⁴ The University's standard CIO agreement states that the flow of benefits to a group "should not be misinterpreted as meaning . . . that the University approves of the organizations' goals or activities." C.A. App. 68; see Pet. App. 2a-3a (emphasis added).

Moreover, the Fourth Circuit's conclusion that inclusion of religiously oriented speech would "entangle" the government with religion (Pet. App. 36a-37a) is backwards. If the University wishes to bar all religious expression from funded student activities, it will be required to undertake the very monitoring and interference that the "entanglement" test is designed to ward against. See *Mergens*, 496 U.S. at 253; *Widmar*, 454 U.S. at 272 n.11.

The supposed distinction between equal access to public facilities and tax benefits, on the one hand, and "direct monetary subsidization," on the other, bears no relation to the purposes and principles of the First Amendment. Access to facilities can be no less valuable to the group than any other form of assistance, and—assuming endorsement is the issue—might well convey more of an impression of "symbolic union" than mere money. See *Zobrest*, 113 S. Ct. at 2474 (Blackmun, J., dissenting). If the University had its own printing office, *Wide Awake* would be entitled to equal access under the decision below. It is hard to see why paying the costs of outside printing requires the opposite result.

We contend that the distinction between forms of aid is symptomatic of the two inconsistent understandings of the demands of the Establishment Clause in the context of generally available subsidy programs. The unconstitutional "advancement of religion" can be judged either against a baseline of neutral treatment or against a baseline of "no aid to religion"; but it makes no sense to move from one baseline to another in response to adventitious differences in factual surroundings or the forms of aid. At best, this doctrinal doublemindedness creates confusion and inconsistency in lower court judgments; more troubling, as in this case, it allows government officials and lower courts the discretion to choose between equal treatment of religion and discrimination.

The time has come to clarify this area of the law. If certiorari is granted in this case, petitioners will argue for

extension of the neutrality principle to all forms of generally available government assistance, so as to reconcile the conflict perceived by the Fourth Circuit between the Establishment Clause and the rest of the First Amendment. In our view, the government may not favor religion over nonreligion, except where appropriate as an accommodation of the free exercise of religion (see *Texas Monthly*, *supra*) and government agents or mouthpieces may not themselves engage in or promote religion (see *Bowen v. Kendrick*, 487 U.S. 589 (1988));¹⁵ but religious individuals and institutions may share in government benefits extended to a wide array of beneficiaries on a nondiscriminatory basis.¹⁶ "The Religion Clauses prohibit the government from favoring religion, but they provide no warrant for discriminating against religion." *Kiryas Joel*, 114 S. Ct. at 2498 (O'Connor, J., concurring); accord, *id.* at 2502 (Kennedy, J., concurring); *id.* at 2510 (Scalia, J., dissenting); *Lee v. Weisman*, 112 S. Ct. 2649, 2678 n.8 (1992) (Souter, J., concurring).

The issue is thus starkly presented: Does the Establishment Clause compel the government to exclude a religious publication from generally available benefits, solely on the basis of its religious viewpoint, where such discrimination would violate the Speech and Press Clauses if the viewpoint of the publication were nonreligious?

¹⁵ In *Kendrick*, grantees were given government money specifically for the purpose of communicating the government's desired message of adolescent sexual self-discipline, and Establishment Clause strictures applicable to government speech therefore applied to them. In this case, by contrast, the various student groups are responsible for their own expression, and the University of Virginia does not attempt to tell them what to say (except when their perspective is religious).

¹⁶ In situations where religious voices would be dominant, restrictions may be needed; but in this case religious groups constitute only a handful of eligible organizations. See *Widmar*, 454 U.S. at 275.

CONCLUSION

The petition for a writ of certiorari should be granted.

Respectfully submitted,

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APPENDICES

1a

APPENDIX A

UNITED STATES COURT OF APPEALS
FOURTH CIRCUIT

No. 92-1736

RONALD W. ROSENBERGER, as a member of Wide Awake
Productions; WIDE AWAKE PRODUCTIONS; WIDE
AWAKE MAGAZINE; GREGORY W. MOURAD; ROBERT J.
PRINCE,
Plaintiffs-Appellants,

v.

THE RECTOR AND VISITORS OF THE UNIVERSITY OF VIR-
GINIA; EDWARD E. ELSON; W.L. LYONS BROWN, JR.;
ROBERT G. BUTCHER, JR.; N. THOMAS CONNALLY;
HOVEY S. DABNEY; WALLER H. HORSLEY; J. THOMAS
HULVEY; EVANS B. JESSEE; PATRICIA M. KLUGE;
ARNOLD H. LEON; LEIGH B. MIDDLEDITCH, JR.; ELIZA-
BETH D. MORIE; FREDDIE W. NICHOLAS, SR.; S.
BUFORD SCOTT; JESSE B. WILSON, III; THOMAS E.
WORRELL, JR.; ADAM S. ARTHUR; ALEXANDER G.
GILLIAM, JR.; RONALD J. STUMP,
Defendants-Appellees.

Argued Nov. 30, 1992

Decided March 14, 1994

Before ERVIN, Chief Judge, WILLIAMS, Circuit
Judge, and SPROUSE, Senior Circuit Judge.

OPINION

ERVIN, Chief Judge:

We must decide whether a state university's refusal to disburse monies from its student activities fund for the benefit of a student-run religious publication violates the First and Fourteenth Amendments to the Constitution. We hold that it does not.

I

A

The University of Virginia collects a mandatory student activities fee of fourteen dollars per semester, together with tuition payments, from each of its full-time students. The proceeds of the collection are deposited in the University's Student Activities Fund ("SAF"), which is used to support the wide variety of student organizations, activities, and publications that function at the University.

To qualify for student-activity-fee funds, a student group first must attain the status of a "Contracted Independent Organization" ("CIO") at the University. CIO status is available to any group that is composed in its majority of students, is managed by officers who are full-time students, keeps an updated copy of its constitution on file with the University, and signs an anti-discrimination disclaimer. CIOs are given access to University facilities, including meeting rooms and computer terminals, as well as the right to apply for student-activity-fee funds. The standard CIO agreement executed between qualified student groups and the University states that benefits provided to the groups by the University

should not be misinterpreted as meaning that those organizations are part of or controlled by the University, that the University is responsible for the

organizations' contracts or other acts or omissions, or that the University approves of the organizations' goals or activities.

As the corporate body responsible under state law for governing the institution,¹ the Rector and Visitors of the University of Virginia ("Rector and Visitors") wield ultimate decisionmaking power over the operation of the SAF. The Rector and Visitors have delegated responsibility for allocating SAF monies to the University's Student Council. A CIO seeking an SAF grant must submit a detailed application for funding to the Appropriations Committee, a subcommittee of the full Student Council, which approves or denies the request. Appeal from a denial of funding by the Appropriations Committee may be taken to the full Student Council. Upon the Council's affirmance of the Appropriations Committee's decision, a second appeal may be argued before the University's Student Activities Committee, a faculty body chaired by a designee of the Vice President for Student Affairs.

The decisions of each of these authorities with respect to awards of SAF monies must be taken in compliance with certain guidelines promulgated by the Rector and Visitors. The guidelines, adopted in 1970, charge the Student Council with administering the SAF "in a manner consistent with the educational purpose of the University as well as with State and Federal law." The guidelines prohibit several categories of student organizations from obtaining SAF funds, according to the nature of the organization and the purpose for which the funds would be used. Although they may attain CIO status, fraternities and sororities, political and religious organizations, and groups whose membership policies are exclusionary in nature are ineligible for SAF funding. The following ex-

¹ See Va.Code Ann. §§ 23-69 to -85 (Michie 1985 & Supp.1993) (delegating to the Rector and Visitors responsibility for governing the affairs of the University, and setting forth procedures and policies for the execution of this duty).

penditures and activities also are excluded by the guidelines: (1) honoraria or similar fees; (2) religious activities; (3) social entertainment and related expenses; (4) philanthropic contributions and activities; and (5) political activities.²

Once a student organization attains CIO status and becomes eligible for funding, the guidelines prescribe the following criteria for allocating SAF monies among CIOs: (1) the size of the group; (2) the University-wide benefits conferred by the group's activities; and (3) the group's financial self-sufficiency. After a student organization is approved for funding, it submits expense vouchers to the SAF, which are paid only upon a determination that a particular expense is fundable under the guidelines. SAF monies are not paid to the group, but are disbursed directly to the group's creditors to discharge the fundable expense.

For the academic year 1990-91, 343 student organizations qualified as CIOs. Of these 343 groups, 135 applied for SAF funding, and 118 were awarded SAF monies. Numbered among the funded organizations were fifteen student publications;³ also included were the Muslim Students Association, the Jewish Law Students Association, and the C.S. Lewis Society.

² This case involves a challenge to the University's refusal to fund a student organization engaged in religious expression. Accordingly, we note that the guidelines offer definitions of the phrases "religious organization" and "religious activity." A "religious organization" is defined as "an organization whose purpose is to practice a devotion to an acknowledged ultimate reality or deity." The guidelines define a "religious activity" as "an activity which primarily promotes or manifests a particular belief(s) in or about a deity or an ultimate reality."

³ These included, *inter alia*, *Declaration*, *Dialogue Magazine*, the *Journal of Law and Politics*, *Loki Science Magazine*, *Oculus*, *Seasons*, *Thoughtlines*, the *University Journal*, the *Virginia Advocate*, the *Virginia Environmental Law Journal*, the *Virginia Literary Review*, and the *Yellow Journal*.

B

In September 1990 Ronald W. Rosenberger, an undergraduate at the University, joined with other University students to found Wide Awake Productions. According to its constitution, Wide Awake Productions is an unincorporated association with the stated purposes of (1) "publishing a magazine of philosophical and religious expression"; (2) "facilitating discussion which fosters an atmosphere of sensitivity to and tolerance of Christian viewpoints"; and (3) "providing a unifying focus for Christians of multicultural backgrounds." Wide Awake Productions publishes *Wide Awake: A Christian Perspective at the University of Virginia* ("Wide Awake"), a nonprofit journal written and edited by the student members of Wide Awake Productions. As stated by Rosenberger, who serves as editor-in-chief of *Wide Awake*, the journal⁴ was launched when the members of Wide Awake Productions "realized that none of the fifteen student-run

⁴ We note that the editors of *Wide Awake* would reject our use of the noun "journal" to describe their publication:

We . . . chose to call our magazine a perspective instead of a journal or viewpoint. The word perspective embraces the idea of viewing a situation from a particular angle (in this case a Christian angle), rather than viewing a situation with a particular conclusion in mind (as a politically partisan magazine would do). Our perspective is a starting point, not a finish line.

Wide Awake: A Christian Perspective at the University of Virginia [hereinafter *Wide Awake*], Mar.-Apr. 1991, at 4. We employ the nomenclature "journal" herein not to cast doubt upon the editors' preference, but purely as a generic appellation; thus, for our purposes a "journal" is simply "[a] periodical containing articles of interest to a particular group" *Webster's II New Riverside University Dictionary* 656 (1988); "a periodical publication dealing with matters of current interest" *Webster's Third New International Dictionary* 1221 (1976). This usage comports with the editors' own description of *Wide Awake* as "a collection of articles exploring from within a Christian framework various issues, both of widespread general interest and of particular interest to Christians." *Wide Awake*, Mar./Apr. 1991, at 4.

publications at the University provided a forum for Christian expression," and decided to fill this perceived void. See "Letter from the Editor," *Wide Awake: A Christian Perspective at the University of Virginia*, Nov.-Dec. 1990, at 2. *Wide Awake* and Wide Awake Productions are not affiliated with any religious institution, and allow any University student to join without regard to sex, race, religion, or color.

At the time notice of the instant appeal was filed, three issues of *Wide Awake* had been published, with approximately 5,000 copies of each issue being distributed free of charge to persons on the University campus. According to editor Rosenberger's comments in the first issue, *Wide Awake's* mission is twofold: "to challenge Christians to live, in word and deed, according to the faith they proclaim[,] and to encourage students to consider what a personal relationship with Jesus Christ means." *Id.* In furtherance of this mission, *Wide Awake* "offers a Christian perspective on both personal and community issues, especially those relevant to college students at the University of Virginia." *Id.*

The content of the three issues of *Wide Awake* published thus far forms part of the record in this case. The first issue's cover story, "Eracing Mistakes," offered Christian solutions for the enduring calamity of racism, see *id.* at 1, 12-14; other articles treated such diverse issues as "crisis pregnancy," Oxford Christian apologeticist C.S. Lewis's ideas about evil and free will, "beating stress," and "praying with a thankful heart," all written from an avowedly Christian stance. See *id.* at 4-5, 6-8, 15, 21. The featured contribution in the second issue, "Out of the Closet and Into the Light," addressed the question "How should the Church respond to homosexuals . . . and vice versa?" See *id.*, Mar./Apr. 1991, at 1, 14-17. The second issue also included an interview with a Christian professor of mathematics at the University, an article on Christian missionary work throughout the world, and

two commentaries offering spiritual guidance (titled respectively "God's Word: A Spiritual Advantage," and "On Your Own: Hope and Spirit"). See *id.* at 5-7, 11-13, 20-21. The third issue contained articles about a University graduate's experiences as a missionary in Moldavia, eating disorders (titled "From Calorie to Calvary"), and a Christian musician ("Keith Green: Piano Man for Christ"). See *id.*, Sep.-Oct. 1991, at 5-7, 12-14, 18-20. Columns in all three issues reviewed newly released recordings of music of religious disposition.⁵

The plaintiffs do not dispute that in publishing *Wide Awake* they are engaged in a "religious activit[y]" as the SAF guidelines define the phrase.⁶ Indeed, after reading its contents dispassionately, we are compelled to mark *Wide Awake's* unflagging⁷ invocation of religious, specifically Christian, themes. The journal's pages are pervasively devoted to providing a "Christian perspective" in printer's ink at the University of Virginia. *Wide Awake's* editorial stance extends to its advertising sales: by the public release of the third issue represented in the record (dated September/October 1991), roughly eighty percent of the journal's five commercial and notice columns were given over to Christian churches or to busi-

⁵ See Michelle Carpick, "All Aboard," in *Wide Awake*, Nov.-Dec. 1990, at 16-17 (reviewing Annie Herring's album *Waiting for My Ride to Come*); Michelle Carpick, "Heart Toward Heaven," *Wide Awake*, Sept.-Oct. 1991, at 21 (reviewing Kim Hill's album *Brave Heart*); Fred Hopkins, "A Choice Cut," *Wide Awake*, Mar.-Apr. 1991, at 19 (reviewing *Chosen*, a newly released album by the "alternative" rock band The Violet Burning).

⁶ See *supra* note 2.

⁷ Careful perusal of *Wide Awake's* three published issues suggests one exception to this generalization: a contribution titled "The Economics of Compassion," which examined Pope John Paul II's 1991 encyclical *Centesimus Annus*. The article discusses in a non-didactic manner the encyclical's "ringing denunciation of socialism" and its "support of the free market." See Greg Mourad, "The Economics of Compassion," *Wide Awake*, Sept.-Oct. 1991, at 8-11.

ness entities purveying goods and services of Christian bent.⁸ Even *Wide Awake*'s physical appearance draws attention to its religious posture: the Christian symbol of the Cross lying in a dark oval field, is printed at the top of each page; another Cross marks the end of each contribution.

Wide Awake Productions attained CIO status shortly after its founding. Commensurate with this status, as the plaintiffs acknowledge, the University openly accords Wide Awake Productions the same access to University facilities as other CIOs. Such access includes the use of University property for the group's meetings, functions, and programs. CIO status affords the members of Wide Awake Productions liberal recourse to University computer terminals, printers, and other equipment employed in the preparation of manuscripts for publication.

In January 1991, Ronald W. Rosenberger, on behalf of Wide Awake Productions, submitted an application for SAF funding to the Appropriations Committee of the Student Council in the amount of \$5,862.00, to cover publishing costs for *Wide Awake*. On February 26 of that year the Appropriations Committee denied Rosenberger's application, stating:

In reviewing the request by Wide Awake Productions, the . . . Committee determined your organization's request could not be funded as it is a religious activity. This determination was made after reviewing your first issue of *Wide Awake*. In particular,

⁸ These included notices and advertisements for the Christian Fellowship Church in Vienna, Virginia (noting times of scheduled Sunday services); The Christian Bookstore in Charlottesville, Virginia (promoting sales of the *NIV Study Bible*); The Center for Christian Study (location unspecified) (inviting full-time University of Virginia students to attend free of charge a weekly lecture and discussion series titled "Thinking Christianly"); and Trinity Presbyterian Church (location unspecified) (noting times of scheduled Sunday services). See *Wide Awake*, Sept./Oct. 1991, at 4, 10, 11, 21.

the committee noted in your Editor's Letter that the publication was "a forum for Christian expression" and a means "to challenge Christians (in how) to live"

Please be aware that this decision simply denies Student Activity Fee funding for your publication. Wide Awake Productions may still print and distribute issues on Grounds.⁹

The members of Wide Awake Productions promptly appealed the decision to the full Student Council on March 3, 1991, contending that their organization has satisfied all applicable SAF funding guidelines and that the Appropriations Committee's denial of funding violated the Constitution of the United States. The Student Council affirmed the Appropriations Committee's decision without comment.

Wide Awake Productions then appealed the Student Council's ruling to the University's Student Activities Committee. On April 16, 1991, Associate Dean of Students Ronald J. Stump informed Rosenberger of the Student Activities Committee's decision to affirm the funding denial. Stump wrote:

After reviewing your organization's constitution, copies of the magazine's first two editions, and the arguments presented at last week's appeal by Wide Awake Productions and by [the] Student Council, the Committee determined that the Wide Awake magazine could not be funded as it is a religious activity. In effect, the Student Activities Committee fully supports the decision and reasoning provided to you in the February 26 letter from [the Appropriations Committee]. As noted in [that] letter, Wide

⁹ The letter communicating the Appropriations Committee's decision to Rosenberger was sent over the signature of Cynthia J. Wilbricht, the Student Council's Vice President for Student Organizations.

Awake Productions may still print and distribute copies of the magazine and as a CIO has full and equal access to other University facilities and services.

The Student Activities Committee's repudiation exhausted all internal avenues of appeal within the University for the institution's denial of SAF funding to Wide Awake Productions.

C

On July 11, 1991, the members of Wide Awake Productions brought this action against the Rector and Visitors and Dean Stump pursuant to 42 U.S.C. § 1983.¹⁰ The plaintiffs' complaint set forth three challenges to the SAF guidelines' exclusion of "religious activities," including the publication of *Wide Awake*, from eligibility for funding consideration, each predicated upon provisions of the Constitution of the United States. To each of the plaintiffs' federal constitutional claims were appended alternative and supplemental claims seeking recovery under the provisions of Article I of the Constitution of Virginia¹¹ and, in the case of Count Two, under the Virginia Act for Religious Freedom, Va.Code Ann. §§ 57-1 to -2 (Michie 1985 & Supp.1993). The plaintiffs did not challenge directly the University's refusal to fund Wide Awake Productions, except insofar as the adverse funding deci-

¹⁰ 42 U.S.C. § 1983 reads in pertinent part:

Every person who, under color of any statute, ordinance, regulation, custom, or usage of any State . . . subjects, or causes to be subjected, any citizen of the United States or other person within the jurisdiction thereof to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws, shall be liable to the party injured in an action at law, suit in equity, or other proper proceeding for redress.

¹¹ Article I of the Virginia Constitution comprises that charter's Declaration of Rights. See Va. Const. pmbl.; I A.E. Dick Howard, *Commentaries on the Constitution of Virginia* 27-313 (1974).

sions flowed directly from the requirements of the guidelines themselves.¹²

Count One, the complaint's most comprehensive theory of recovery, alleged that the guidelines' proscription of SAF funding for the publication costs of *Wide Awake* violated the Free Speech and Press Clause of the First Amendment to the United States Constitution¹³ and Article I, Section 12 of the Virginia Constitution¹⁴ (1) by unlawfully depriving the members of Wide Awake Productions of government benefits solely because of the content and viewpoint of their speech in *Wide Awake*; and (2) by illegally excluding the members of Wide Awake Productions from the "limited public forum" created by the Rector and Visitors' establishment of the SAF and promulgation of the funding guidelines. Count One also contended that the guidelines' "definitions for allocating SAF funds to CIOs" are unconstitutionally vague because persons of ordinary intelligence must guess at their meaning, and unlawfully overbroad because they impinge constitutionally protected activity.

Count Two of the complaint maintained that the guidelines' denial of SAF funding to "religious activities" violated the Free Exercise Clause of the First Amendment to the Federal Constitution,¹⁵ Article I, Section 16 of the

¹² The complaint did not challenge any of the University's procedures for administering the SAF, nor the discretionary authority vested by the Rector and Visitors in official student and University governing bodies with respect to SAF funding decisions.

¹³ See U.S. Const. amend. I, cl. 3 ("Congress shall make no law . . . abridging the freedom of speech, or of the press" . . .).

¹⁴ Article I, Section 12 of the Virginia Constitution provides *inter alia* that "any citizen may freely speak, write, and publish his sentiments on all subjects," and that "the General Assembly shall not pass any law abridging the freedom of speech or of the press. . . ." Va. Const. art. I, § 12, cls. 2, 3.

¹⁵ See U.S. Const. amend. I, cl. 2 ("Congress shall make no law . . . prohibiting the free exercise [of religion]" . . .).

Virginia Constitution,¹⁶ and the Virginia Act for Religious Freedom, Va.Code Ann. §§ 57-1 to -2 (Michie 1985 & Supp.1993),¹⁷ by discriminating in the granting of a government benefit based upon (1) the religious content of the expression in *Wide Awake*; and (2) the religious beliefs, character, or affiliation of the members of Wide Awake Productions. Count Two also imputed to the Rector and Visitors "conduct constitut[ing] a failure to give reasonable accommodation to the plaintiffs' religious beliefs."

Count Three of the complaint alleged that the guidelines' prohibition against subsidizing "religious activit[ies]," coupled with the Rector and Visitors' denial of SAF funds to Wide Awake Productions, violated the Equal Protection Clause of the Fourteenth Amendment to the Federal Constitution¹⁸ and the Anti-Discrimination Clause of Ar-

¹⁶ Article I, Section 16 of the Virginia Constitution provides *inter alia* that "all men are equally entitled to the free exercise of religion, according to the dictates of conscience," and that the Virginia General Assembly "shall not . . . confer any peculiar privileges or advantages on any sect or denomination. . . ." Va. Const. art. I, § 16, cls. 2, 6.

¹⁷ After a lengthy preamble denouncing those who would force their religion upon others, the Virginia Act for Religious Freedom provides in pertinent part:

"Be it enacted by the General Assembly, That no man shall be compelled to frequent or support any religious worship, place or ministry whatsoever, nor shall be enforced, restrained, molested, or burthened, in his body or goods, nor shall otherwise suffer on account of his religious opinions or belief; but that all men shall be free to profess, and by argument to maintain, their opinions in matters of religion, and that the same shall in no wise diminish, enlarge or affect their civil capacities."

Va.Code Ann. § 57-1 (Michie 1985 & Supp. 1993).

¹⁸ See U.S. Const. amend. XIV, § 1, cl. 4 ("No State shall . . . deny to any person within its jurisdiction the equal protection of the laws.").

ticle I, Section 11 of the Virginia Constitution.¹⁹ Specifically, Count Three contended (1) that the guidelines "den[ied] plaintiffs the benefits to which other students and CIOs are entitled" by unconstitutionally discriminating against Wide Awake Productions on the basis of the content or viewpoint of its members' speech and association; and (2) that the guidelines unconstitutionally discriminated against the plaintiffs' religious speech "by denying [them] the benefits that other students and CIOs engaged in religious speech and activities receive and have received. . . ." This viewpoint- and religious-based discrimination, Count Three maintained, was not justified by a compelling state interest, nor was it narrowly tailored to achieve whatever minimal interest the Rector and Visitors may have in refusing to fund student "religious activit[ies]."

The plaintiffs sought redress for their alleged injuries in the form of (1) a declaratory judgment that the guidelines' prohibition against the funding of "religious activities" violated their rights under the United States Constitution, the Virginia Constitution, and the Virginia Act for Religious Freedom; (2) a permanent order enjoining the Rector and Visitors from promulgating any proscription against the funding of Wide Awake Productions on the basis of the content or viewpoint of its members' speech in *Wide Awake*; (3) compensatory damages of at least \$5,862.00, the sum of SAF funds unconstitutionally denied Wide Awake Productions; and (4) an order awarding Wide Awake Productions reasonable costs and attorneys' fees pursuant to 42 U.S.C. § 1988.²⁰

¹⁹ Article I, Section 11 of the Virginia Constitution, provides *inter alia* "[t]hat the right to be free from any government discrimination upon the basis of religious conviction, race, color, sex, or national origin shall not be abridged, except that the mere separation of the sexes shall not be considered discrimination." Va. Const. art. I, § 11, cl. 3.

²⁰ 42 U.S.C. § 1988 provides that

[i]n any action or proceeding to enforce a provision of section[] . . . 1983 . . . of this title, . . . the court, in its discre-

Agreeing that there were no material facts at issue, both parties sought summary judgment as a matter of law. After hearing oral argument on their opposing motions, the district court granted summary judgment in favor of the Rector and Visitors on each count of the plaintiffs' complaint, concluding (1) that the SAF was not a "limited public forum;" (2) that application of the funding guidelines did not result in viewpoint or content discrimination against the speech of Wide Awake Productions; and (3) that the denial of funding did not burden the plaintiffs' free exercise of religion. See *Rosenberger v. Rector & Visitors of Univ. of Va.*, 795 F.Supp. 175, 178-83 (W.D.Va.1992) (mem.). The court also held that the plaintiffs' equal protection challenge to the guidelines failed because the members of Wide Awake Productions had not adduced evidence of the Rector and Visitors' discriminatory intent. Although the district court did not scrutinize the complaint's allegations that the guidelines violated the Virginia Constitution and the Virginia Act for Religious Freedom, it held that the restrictions on funding for "religious activities" did not "impose an impermissible burden on the plaintiffs' exercise of their rights as guaranteed by . . . the State Constitution[], or the Virginia Act for Religious Freedom." *Id.* at 17.

This appeal followed.

II

Before addressing the substance of the plaintiffs' assignments of error, we wish to make clear what precisely is at issue in this appeal. The complaint alleges that the Rector and Visitors have violated rights guaranteed the plaintiffs by the Constitution of the United States, the Constitution of Virginia, and the Virginia Act for Religious Freedom. Two of these sources derive from the

tion, may allow the prevailing party, other than the United States, a reasonable attorney's fee as part of the costs.

Id.

substantive law of the Commonwealth of Virginia. As such, they comprise fonts of individual liberties independent of the Federal Constitution, and are therefore susceptible of autonomous interpretation by the courts of the Commonwealth.²¹ Although the district court embraced these pendent state-law claims in its favorable grant of summary judgment to the Rector and Visitors,²² they were not controverted by the parties at the summary judgment hearing, and were not subjected to independent scrutiny on their merits below. We have no objective basis, therefore, upon which to assume that any interpretation of the Virginia Constitution or the Virginia Act for Religious Freedom contributed separately to the judgment from which this appeal was taken. The parties have not attempted to resuscitate them in their briefs or at oral argument. To bring grounds for relief to the attention of an appellate tribunal, the Federal Rules of Appellate Procedure oblige the parties to offer a written

argument . . . contain[ing] [their] contentions . . . with respect to the issues presented, and the reasons therefor, with citations to the authorities . . . and parts of the record relied on.

Fed.R.App.P. 28(a)(5), (b). We observe that none of the briefs filed by either party in this court contains "contentions" about the application of the Virginia Constitution's Declaration of Rights or the Virginia Act for Religious Freedom to the instant case, or "citations to . . . authorities" that might illuminate the special rights the state charter and religious-freedom statute are said to

²¹ See, e.g., William J. Brennan, Jr., *State Constitutions and the Protection of Individual Rights*, 90 Harv.L.Rev. 489, 491, 498-504 (1977).

²² See *Rosenberger v. Rector & Visitors of Univ. of Va.*, 795 F.Supp. 175, 183 (W.D.Va.1992) (mem.) (holding that funding restrictions on "religious activities" do not impermissibly burden rights guaranteed by the Constitution of Virginia or the Virginia Act for Religious Freedom).

guarantee. We therefore are compelled to conclude that the parties have failed to appeal the district court's grant of summary judgment with respect to these state-law theories of recovery. Failure of this nature constitutes abandonment of the claims, and precludes us from considering them further herein. *See Shopco Distrib. Co. v. Commanding Gen.*, 885 F.2d 167, 170 n. 3 (4th Cir. 1989) (noting that failure to comply with terms of former version of Fed.R.App.P. 28(a)(5) constitutes waiver of asserted claims).

Therefore, the scope of our inquiry is confined to such of the plaintiffs' assignments of error as rest upon the Constitution of the United States. These are two.²³ First, the plaintiffs contend that the guidelines' proscription of SAF funding for "religious activities" violates the Free Speech and Press Clause of the First Amendment (1) by depriving them of government benefits based solely on the content and viewpoint of their speech in *Wide Awake*, and (2) by excluding them from the "limited public forum" represented by the SAF. Second, the plaintiffs argue that the guidelines' funding restrictions discriminate against them in contravention of the Equal Protection Clause of the Fourteenth Amendment (1) by denying them benefits which other CIOs engaged in religious speech and activities have received, and (2) because the restrictions serve no compelling state interest, and are not narrowly tailored to satisfy whatever minimal interest the Rector and Visitors may have in denying funding to "religious activit[ies]." In the discussion that follows, we

²³ In granting the University's motion for summary judgment, the district court ruled that the denial of funding to Wide Awake Productions did not unconstitutionally burden the plaintiffs' free exercise of religion. *See Rosenberger v. Rector & Visitors of Univ. of Va.*, 795 F.Supp. 175, 178-83 (W.D.Va.1992) (mem.). Because the plaintiffs failed to assign error to this holding on appeal, it meets the same fate as the plaintiffs' state-law claims: we consider it abandoned, and decline to address it herein. *See Fed.R. App.P. 28(a)(5)*; *Shopco Distrib. Co.*, 885 F.2d at 170 n. 3.

address these two claims in turn, reviewing the legal conclusions on which the district court granted summary judgment *de novo*. *See, e.g., Brock v. Entre Computer Ctrs., Inc.*, 933 F.2d 1253, 1259 (4th Cir.1991).

III

First, we examine the plaintiffs' contention that the guidelines' proscription of SAF funding for "religious activities" violates the Free Speech and Press Clause of the First Amendment by depriving the members of Wide Awake Productions of government benefits based solely on the content and viewpoint of their speech in *Wide Awake*.

A

Because our decision rests ultimately upon our understanding of the language of the First Amendment, we here undertake cursory review of certain principles of constitutional interpretation that guide our deliberations.

Like our cultural and ideological ancestors the Magna Carta (1215) and the English Bill of Rights (1688), the first ten amendments to the Federal Constitution represent what Justice Story called "a solemn recognition of limitations upon the power of parliament; that is, a declaration, that parliament *ought* not to abolish, or restrict" certain fundamental rights of the person. III Joseph Story, *Commentaries on the Constitution of the United States* § 980, at 695 (1833). Taken as a whole, the provisions of the Bill of Rights form a stout bulwark against government encroachment upon the fundamental liberties of every person within the jurisdiction of the United States. The amendments weigh as a counterpoise to the specifically enumerated powers granted by the people of the several states to their national government in the first three Articles of the Federal Constitution.

By its terms the Free Speech and Press Clause of the First Amendment reflects the limiting purpose of the

Bill of Rights. The Clause pronounces the federal legislature's impotence to curb any individual's freedom to express verbally her views upon any subject; it states that Congress shall "make *no* law . . . *abridging* the freedom of speech, or of the press." U.S. Const. amend. I, cl. 3 (emphasis added). While the First Amendment thus represents a guarantee that freedom will be preserved in the face of legislative ambition, it goes no further. Although the Amendment preserves inviolate the individual's *right* to speak, it sustains speech itself only indirectly. The Speech and Press Clause cannot be metamorphosed into a promise that the federal government will purchase a bullhorn, paper, and ink for the convenience of every garrulous member of the American populace. The Constitution does not guarantee the American people the means of self-expression; it simply pledges that Congress (and, through application of the Fourteenth Amendment, the states²⁴) will not enact laws or regulations restraining at its inception a person's right freely to speak her views and to disseminate them by every means at her disposal. A century and six decades after the publication of his commentaries on our national charter, Justice Story's expression of this principle retains all its peerless power:

That this amendment was intended to secure to every citizen an absolute right to speak, or write, or print, whatever he might please, without any responsibility, public or private, therefor, is a supposition too wild

²⁴ The Due Process Clause of the Fourteenth Amendment has been held to protect from infringement by the states all of the First Amendment liberties potentially at issue in this case: the freedoms of speech, *Fiske v. Kansas*, 274 U.S. 380, 387, 47 S.Ct. 655, 657, 71 L.Ed. 1108 (1927); *Gitlow v. New York*, 268 U.S. 652, 666, 45 S.Ct. 625, 629-30, 69 L.Ed. 1138 (1925); press, *Near v. Minnesota ex rel. Olson*, 283 U.S. 697, 722-23, 51 S.Ct. 625, 633-34, 75 L.Ed. 1357 (1931); free exercise of religion, *Cantwell v. Connecticut*, 310 U.S. 296, 303, 60 S.Ct. 900, 903, 84 L.Ed. 1213 (1940); and non-establishment of religion, *Everson v. Board of Educ.*, 330 U.S. 1, 15-16, 67 S.Ct. 504, 511-512, 91 L.Ed. 711 (1947).

to be indulged by any rational man. . . . It is plain, then, that the language of the amendment imports no more, than that every man shall have a right to speak, write, and print his opinions upon any subject whatsoever, without prior restraint. . . .

Story, *supra*, § 993, at 703-04.

B

With these interpretative precepts firmly in hand, we turn to the assignment of error lodged by the plaintiffs.

The plaintiffs do not suggest that the Rector and Visitors have restrained them from speaking, writing, or printing commentary upon religious themes, or indeed upon any other subject, on the campus or within the purview of the University of Virginia. As they freely admit, Wide Awake Productions is afforded the full benefits of CIO status by the University. Its members are granted the same access to meeting rooms on University grounds as other CIOs, and are given generous run of University property for their work and programs. The University affords Wide Awake Productions liberal recourse to its computer terminals, printers, and other equipment used to prepare manuscripts for publication. With the University's full consent, the plaintiffs have thus far distributed several thousand copies of *Wide Awake* on University grounds. The plaintiffs do not, indeed cannot, suggest, therefore, that the Rector and Visitors have placed a per se unconstitutional prior restraint upon their freedom actually to speak or to publish their views by denying them equal access to University facilities. *Cf. Widmar v. Vincent*, 454 U.S. 263, 277, 102 S.Ct. 269, 278, 70 L.Ed.2d 440 (1981) (discussing erection of prior restraint against student organization's use of state university property); *Healy v. James*, 408 U.S. 169, 180, 92 S.Ct. 2338, 2345, 33 L.Ed.2d 266 (1972) (same).

Nor is the plaintiffs' complaint simply that the Rector and Visitors have refused to pay for the publication of their speech with treasure from the University fisc. If such were the nature of this dispute, we might leave the field of independent analysis fallow. For there is no question that the Commonwealth of Virginia, like any private owner of property, may preserve the land and chattels under its control for the use to which they are dedicated, and decline to lend them for other purposes. *E.g.*, *Lamb's Chapel v. Center Moriches Union Free Sch. Dist.*, — U.S. —, —, 113 S.Ct. 2141, 2146, 124 L.Ed.2d 352 (1993); *Cornelius v. NAACP Legal Defense & Educ. Fund, Inc.*, 473 U.S. 788, 800, 105 S.Ct. 3439, 3447-3448, 87 L.Ed.2d 567 (1985); *Perry Educ. Ass'n v. Perry Local Educators' Ass'n*, 460 U.S. 37, 46, 103 S.Ct. 948, 955, 74 L.Ed.2d 794 (1983). As agents of the Commonwealth, the Rector and Visitors need not subsidize extracurricular student activities in any form. *Healy v. James*, 408 U.S. 169, 182 n. 8, 92 S.Ct. 2338, 2346 n. 8, 33 L.Ed.2d 266 (1972). Having undertaken such subsidies, they need not have promulgated criteria by which the Student Council could differentiate between competing funding requests. Nor are the Rector and Visitors under any affirmative obligation to ensure that University students' expressive activities are funded. In language redolent of Justice Story's pointed commentary on the Speech and Press Clause, the Supreme Court has rejected the notion that the rights of freedom of speech and freedom of the press "are somehow not fully realized unless they are subsidized by the state." *Regan v. Taxation with Representation*, 461 U.S. 540, 546, 103 S.Ct. 1997, 2001, 76 L.Ed.2d 129 (1983).

The Student Council's exercise of discretion in withholding SAF monies from Wide Awake Productions is not, therefore, the basis of the plaintiffs' complaint. The plaintiffs contend, instead, that once the Rector and Visitors have chosen to promulgate guidelines governing the

allocation of funds that support student speech among competing student interests, such guidelines cannot condition funding awards on the content or viewpoint of a prospective recipient's speech. The Rector and Visitors have violated the First Amendment, the plaintiffs maintain, by denying them the benefit of a University-funded SAF grant on grounds that their publication of *Wide Awake* constitutes a "religious activit[y]"²⁵ within the meaning of the guidelines. Such discrimination contravenes the First Amendment, they assert, because it implicitly condemns the content and viewpoint of their speech in *Wide Awake*. This content and viewpoint discrimination imposes a prior restraint upon the ability of Wide Awake Productions to enjoy government largesse, and, the plaintiffs contend, must therefore be struck down.

²⁵ The guidelines draw a distinction between "religious organizations" and "religious activities." "Religious organizations" are student groups whose whole or primary purpose is to practice devotion to an ultimate reality or deity; such groups are wholly barred from receiving SAF funds. "Religious activities," on the other hand, are forms of conduct or behavior that cannot, commensurate with the guidelines, be subsidized with SAF monies. The result of the guidelines' identification of these two categories, however, is the total proscription of SAF funding for all forms of religious endeavor by CIOs at the University.

When the Student Council's Appropriations Committee, and later the Student Activities Committee, informed Ronald W. Rosenberger that Wide Awake Productions would not be the recipient of SAF funds, they referred to the publication of *Wide Awake* as a "religious activity." It has not been suggested that the defendants rejected the funding request because Wide Awake Productions constitutes a "religious organization." Hence we assume with the parties that the denial of funding rested on a determination that *Wide Awake* was "an activity . . . primarily promot[ing] or manifest[ing] a particular belief(s) in or about a deity or an ultimate reality."

C

Having identified the constitutional character of the plaintiffs' first assignment of error, we proceed to seek its resolution.

The notion that, whenever a government benefit or privilege might be withheld altogether, it may be withheld on whatever conditions government chooses to impose, has been thoroughly repudiated by the Supreme Court since the middle of this century. *See, e.g., Sherbert v. Verner*, 374 U.S. 398, 405, 83 S.Ct. 1790, 1794-1795, 10 L.Ed. 2d 965 (1963); *Speiser v. Randall*, 357 U.S. 513, 518, 526, 78 S.Ct. 1332, 1338, 1342, 2 L.Ed.2d 1460 (1958); *see also* Laurence H. Tribe, *American Constitutional Law* § 11-5, at 781-84 (2d ed. 1988) (discussing "elusive" distinction between withholding a government subsidy for and imposing a penalty upon exercise of a constitutional right). Unconstitutional conditions, which make enjoyment of a government benefit contingent on sacrifice of an independent constitutional right, are *prima facie* invalid. For

if the government could deny a benefit to a person because of his constitutionally protected speech . . . , his exercise of th[at] freedom[] would in effect be penalized and inhibited. This would allow the government to "produce a result which [it] could not command directly." Such interference with constitutional rights is impermissible.

Perry v. Sindermann, 408 U.S. 593, 597, 92 S.Ct. 2694, 2697, 33 L.Ed.2d 570 (1972) (quoting *Speiser*, 357 U.S. at 526, 78 S.Ct. at 1342). Whether a condition is unconstitutional depends on whether the government may properly demand sacrifice of the particular right asserted in the context of its exercise. *FCC v. League of Women Voters*, 468 U.S. 364, 380, 395, 104 S.Ct. 3106, 3117, 3125, 82 L.Ed.2d 278 (1984).

We must decide whether the guidelines' prohibition against funding "religious activities" imposes an uncon-

stitutional condition upon receipt of the government benefit inherent in an award of SAF monies by infringing the plaintiffs' claimed First Amendment right to indulge religious expression. This decision harbors a two-part inquiry. First, we must determine whether the publication of *Wide Awake* constitutes "speech" protected by the Speech and Press Clause of the First Amendment. If we so decide, we then must ask whether the Rector and Visitors are imposing an unconstitutional condition upon the exercise of the plaintiffs' protected speech; that is, we must determine whether the Rector and Visitors are demanding that the members of Wide Awake Productions cease publishing religious speech in *Wide Awake* before they may become eligible²⁶ for an award of SAF funds.

1.

With respect to the first part of this inquiry, we easily conclude that the plaintiffs' publication of religious speech in *Wide Awake* falls within the protective ambit of the

²⁶ The parties wrangle at considerable length over the question whether Wide Awake Productions ever was "eligible" for SAF funding at all. The plaintiffs contend that attainment of CIO status by Wide Awake Productions made the organization "eligible" to receive SAF monies. The Rector and Visitors argue that Wide Awake Productions never was "eligible" for funding because its central purpose—publication of *Wide Awake*—constituted a "religious activity." We need not address the merits of these opposing positions, because we reject forthwith the Rector and Visitors' suggestion that they be given unlimited discretion to determine the "eligibility" of student groups for SAF funding to the extent such discretion derogates the provisions of the Bill of Rights. The duty of upholding (and therefore of not wounding indirectly) the Federal Constitution devolves upon the Rector and Visitors as a matter of law; as agents of the Commonwealth of Virginia, the Rector and Visitors are bound to observe the strictures of the First Amendment, and may not issue regulations transgressing its bounds. As we note elsewhere herein, once SAF funds are made available to student groups at the University, they must be distributed in a viewpoint-neutral manner, absent the showing of a compelling state interest.

Speech and Press Clause. There is no question that discussions of religion are, as they long have been, a form of speech protected by the First Amendment. *See, e.g., Heffron v. International Soc'y for Krishna Consciousness, Inc.*, 452 U.S. 640, 647, 101 S.Ct. 2559, 2563-2564, 69 L.Ed.2d 298 (1981); *Saia v. New York*, 334 U.S. 558, 561-62, 68 S.Ct. 1148, 1150-51, 92 L.Ed. 1574 (1948). Although the Rector and Visitors' prohibition of SAF funding for "religious activities" is not directed exclusively at religious *speech*, the phrase "religious activity[y]" as defined in the guidelines necessarily encompasses speech that "primarily promotes or manifests a particular belief[] in or about a deity or an ultimate reality." The word "activity" is defined as "an occupation, pursuit, or recreation in which a person is active," *Webster's Third New International Dictionary* 22 (1976).

There can be no doubt that the publication of a journal of religious expression is precisely such an occupation, pursuit, or recreation.

2.

Having answered the first prong of the inquiry affirmatively, we address the second prong: Have the Rector and Visitors effectively demanded that the members of Wide Awake Productions cease publishing religious commentary in Wide Awake before they may become "eligible" for an award of SAF funds? We conclude that they have.

The guidelines lay upon the Student Council an affirmative obligation not to fund religious activity[ies].²⁷ This obligation means that religious expression, such as that in *Wide Awake*, is never allowed to compete for funds with other forms of speech that might be indulged by University students. Even if a student organization achieves CIO status, to the extent that its pursuits and functions consist of religious speech, the organization's funding requests

will be summarily rejected by the Student Council. In effect, then, the Rector and Visitors' restriction has operated to erect a prior restraint on University subsidization of all forms of religious expression in which a CIO might engage. While we acknowledge that a CIO has no right to funding by the Rector and Visitors, *see, e.g., Lamb's Chapel v. Center Moriches Union Free Sch. Dist.*, — U.S. —, —, 113 S.Ct. 2141, 2146, 124 L.Ed.2d 352 (1993), when funds are made available to CIOs generally, they must be distributed in a viewpoint-neutral manner, absent considerations of equal constitutional dignity. *See Board of Educ. v. Mergens*, 496 U.S. 226, 248, 110 S.Ct. 2356, 2370-71, 110 L.Ed.2d 191 (1990) (plurality opinion); *Grand Rapids Sch. Dist. v. Ball*, 473 U.S. 373, 382, 105 S.Ct. 3216, 3221-22, 87 L.Ed.2d 267 (1985); *Roemer v. Board of Pub. Works*, 426 U.S. 736, 746, 96 S.Ct. 2337, 2344-45, 49 L.Ed.2d 179 (1976) (plurality opinion); *Everson v. Board of Educ.*, 330 U.S. 1, 18, 67 S.Ct. 504, 513, 91 L.Ed. 711 (1947). Although government need not subsidize exercise of a constitutional right, the lack of an affirmative duty of financial support does not mean that government may, in general, penalize exercise of constitutional rights by withholding from their possessors an otherwise discretionary benefit.

We conclude that the Rector and Visitors' erection of a prior restraint against University funding of such "religious activities" as the publication of religious expression in *Wide Awake* constitutes precisely such a penalty, because it restrains Wide Awake Productions from gaining access altogether to a funding source generally available to CIOs not engaged in religious expression.²⁷ This prior restraint ultimately forces the members

²⁷ We do not address the guidelines' prohibition of SAF funding for such organizations as fraternities and sororities or for such activities as social entertainment or philanthropic contributions. Those excluded categories are not at issue in the instant case. *See supra* note 2 and accompanying text.

of Wide Awake Productions—unlike their non-sectarian CIO colleagues—to seek financial sustenance for their speech from coffers outside the University. The Rector and Visitors' funding proscription thus creates an uneven playing field on which the advantage is tilted towards CIOs engaged in wholly secular modes of expression.

We hold, therefore, that the Rector and Visitors have conditioned the plaintiffs' receipt of government benefits upon their foregoing constitutionally protected religious expression.

D

In reaching and forbidding funding for speech that meets the definition of "religious activity," but not for speech of other types, the SAF guidelines discriminate among speech on the basis of its content. *Arkansas Writers' Project, Inc. v. Ragland*, 481 U.S. 221, 229-30, 107 S.Ct. 1722, 1727-28, 95 L.Ed.2d 209 (1987). In order to justify differential treatment of funding eligibility based on the content of the speech involved, "the State must show that its regulation is necessary to serve a compelling state interest and is narrowly drawn to achieve that end." *Id.* at 231, 107 S.Ct. at 1729; *see also Widmar v. Vincent*, 454 U.S. 263, 270, 102 S.Ct. 269, 274, 70 L.Ed.2d 440 (1981); *Carey v. Brown*, 447 U.S. 455, 461, 464-65, 100 S.Ct. 2286, 2290, 2292-93, 65 L.Ed.2d 263 (1980); *Healy v. James*, 408 U.S. 169, 184, 92 S.Ct. 2338, 2347-48, 33 L.Ed.2d 266 (1972). It is to this inquiry that we now turn.

In defense of the guidelines' prohibition, the Rector and Visitors claim a compelling interest in maintaining strict separation of church and state.²⁸ They derive this

²⁸ In defense of their position, the Rector and Visitors cite a number of recent decisions by the Supreme Court; without exception, none of these cases are relevant to the question before us, and we find it unnecessary to discuss them at length. For thoroughness' sake, however, we observe that *Rust v. Sullivan*, 500 U.S. 173,

interest from the Establishment Clause of the First Amendment, which admonishes Congress (and, through application of the Fourteenth Amendment, the states²⁹) to "make no law respecting an establishment of religion." U.S. Const. amend. I, cl. 1. The Rector and Visitors argue that they cannot fund "religious activities" without violating the Establishment Clause.

We agree with the Rector and Visitors that their interest as state officials in complying with federal constitutional obligations, including avoiding the creation of an "establishment" of religion at the University of Virginia, may be characterized as compelling. *See Widmar*, 454

111 S.Ct. 1759, 114 L.Ed.2d 233 (1991), on which the Rector and Visitors lay great emphasis, did not involve the erection of a prior restraint on abortion counseling by recipients of family planning funds under Title X of the Public Health Service Act, 42 U.S.C. §§ 300 to 330a-6a. In *Rust*, regulations issued by the Secretary of Health and Human Services simply limited the ability of Title X fund recipients to engage in abortion-related expressive activities. *Id.* at —, 111 S.Ct. at 1764. Although, like the SAF funding restrictions at issue here, the regulations broadly prohibited Title X projects from engaging in activities that "encourage[d], promote[d] or advocate[d] abortion as a method of family planning," *id.* at —, 111 S.Ct. at 1765, there was no question that the recipients were recipients—that is, that they already had received Title X funding. In his opinion for the Court, Chief Justice Rehnquist emphasized this distinction:

Petitioners' reliance on [the Court's "unconstitutional conditions" cases] is unavailing . . . because here the government is not denying a benefit to anyone, but is instead simply insisting that public funds be spent for the purposes for which they were authorized.

Id. at —, 111 S.Ct. at 1774. Thus, the issue in *Rust* was not—as here—whether the recipients could obtain access to government benefits. It was, instead, whether the government could be allowed to dictate the use to which already-allocated funds could be dedicated.

²⁹ *E.g., Everson v. Board of Educ.*, 330 U.S. 1, 15-16, 67 S.Ct. 504, 511-512, 91 L.Ed. 711 (1947).

U.S. at 271, 102 S.Ct. at 275. It does not follow, however, that offering Wide Awake Productions an equal opportunity to compete for SAF funds necessarily would be incompatible with the Establishment Clause. *Id.*

That government largesse ultimately should redound to the benefit of persons engaged in promoting religion does not necessarily entail violation of the Establishment Clause. If such were the case, "a church could not be protected by the police and fire departments, or have its public sidewalk kept in repair." *Id.* at 274-75, 102 S.Ct. at 277. Moreover, such an extreme position is plainly contrary to many of the Supreme Court's decisions upholding government aid to parochial elementary and secondary schools. See, e.g., *Zobrest v. Catalina Foothills Sch. Dist.*, — U.S. —, —, —, 113 S.Ct. 2462, 2466-67, 125 L.Ed.2d 1 (1993) (summarizing the Court's Establishment Clause jurisprudence with respect to government aid to parochial schools).

To test the Rector and Visitors' Establishment Clause justification for the guidelines' funding policy, then, we must consider whether awarding SAF monies to the members of Wide Awake Productions to defray the publication costs of *Wide Awake* would constitute an "establishment of religion" at the University of Virginia. In making this determination, we seek enlightenment in the Supreme Court's Establishment Clause jurisprudence. That jurisprudence holds that a governmental policy will not offend the Establishment Clause if it can pass constitutional muster under the three-pronged test of *Lemon v. Kurtzman*, 403 U.S. 602, 91 S.Ct. 2105, 29 L.Ed.2d 745 (1971), which guides "[t]he general nature of our inquiry in this area," *Mueller v. Allen*, 463 U.S. 388, 394, 103 S.Ct. 3062, 3066, 77 L.Ed.2d 721 (1983):

First, the [governmental policy] must have a secular legislative purpose; second, its principal or primary effect must be one that neither advances nor inhibits

religion . . . ; finally, the [policy] must not foster an excessive government entanglement with religion.

Lemon, 403 U.S. at 612-13, 91 S.Ct. at 2111-12.³⁰

In the paragraphs that follow, we consider the Rector and Visitors' Establishment Clause justification for pro-

³⁰ As we are well-aware, the Supreme Court's applications of *Lemon* have been characterized by fine distinctions, and have aroused considerable controversy among the Justices themselves, even to the point of frequent suggestion in non-majority opinions that *Lemon* be abandoned. We note, for example, Justice Scalia's recent denunciation of *Lemon*:

Like some ghoul in a late-night horror movie that repeatedly sits up in its grave and shuffles abroad, after being repeatedly killed and buried, *Lemon* stalks our Establishment Clause jurisprudence once again, frightening the little children

Lamb's Chapel v. Center Moriches Union Free Sch. Dist., — U.S. —, —, —, 113 S.Ct. 2141, 2149-50, 124 L.Ed.2d 352 (Scalia, J., dissenting, joined by Kennedy, J.); see also, e.g., *Wallace v. Jaffree*, 472 U.S. 38, 68-69, 105 S.Ct. 2479, 2495-2497, 86 L.Ed.2d 29 (1985) (O'Connor, J., concurring in judgment) (arguing that "the standards announced in *Lemon* should be reexamined and refined in order to make them more useful in achieving the underlying purpose of the First Amendment"); *id.* at 91, 105 S.Ct. at 2508 (White, J., dissenting) (urging "basic reconsideration of our precedents" surrounding the Establishment Clause); *id.* at 110, 105 S.Ct. at 2517 (Rehnquist, J., dissenting) (stating that the "*Lemon* test has no . . . grounding in the history of the First Amendment" and "has simply not provided adequate standards for deciding Establishment Clause cases").

Nevertheless, "*Lemon*, however frightening it might be to some, has not been overruled." *Lamb's Chapel*, — U.S. at — n. 7, 113 S.Ct. at 2148 n. 7. We are bound to follow the decisions of the Supreme Court, not the pronouncements of a single Justice or even of a pair of Justices in dissent. As Justice Powell has stated,

the three-pronged *Lemon* test . . . is the only coherent [Establishment Clause] test a majority of the Court has ever adopted. . . . *Lemon* has never been overruled or its test modified.

Jaffree, 472 U.S. at 64, 105 S.Ct. at 2494 (Powell, J., concurring) (footnote and citations omitted). For purposes of the Establishment Clause question presented here, therefore, we are bound to consider *Lemon* governing precedent.

hibiting SAF funding of "religious activities" in light of *Lemon*.³¹

³¹ We reject the plaintiffs' contention that the Supreme Court's decision in *Texas Monthly, Inc. v. Bullock*, 489 U.S. 1, 109 S.Ct. 890, 103 L.Ed.2d 1 (1989) (plurality opinion), controls our analysis of the Establishment Clause issue presented by this case, and, obviates the need to examine the guidelines' restrictions in light of *Lemon v. Kurtzman*. *Texas Monthly* involved a state sales tax exemption for "[p]eriodicals that are published or distributed by a religious faith and that consist wholly of writings sacred to a religious faith." *Texas Monthly*, 489 U.S. at 5, 109 S.Ct. at 894. The Court held that the exemption was insufficiently broad—that is, that it did not reach an adequately wide class of publications—to pass Establishment Clause scrutiny.

If *Texas Monthly* has application in the instant case, it is only as an extra pillar for our initial, but not dispositive, holding that the SAF guidelines' "religious activit[y]" prohibition has erected a presumptively unconstitutional prior restraint on the receipt of a government benefit. In his opinion for a three-Justice plurality, Justice Brennan stated:

[W]hen government directs a subsidy exclusively to religious organizations that is not required by the Free Exercise Clause and that either burdens nonbeneficiaries markedly or cannot reasonably be seen as removing a significant state-imposed deterrent to free exercise of religion . . . , it "provide[s] unjustifiable awards of assistance to religious organizations" and cannot but "conve[y] a message of endorsement" to slighted members of the community. This is particularly clear where, as here, the subsidy is targeted at writings that promulgate the teachings of religious faiths.

Id. at 15, 109 S.Ct. at 899 (quoting *Corporation of Presiding Bishop of Church of Jesus Christ of Latter-day Saints v. Amos*, 483 U.S. 327, 348, 107 S.Ct. 2862, 2874-75, 97 L.Ed.2d 273 (1987) (O'Connor, J., concurring in judgment)). As we explain below, an award of SAF funds to defray publication costs of *Wide Awake* would "convey a message of endorsement" of Christianity to non-Christian members of the University of Virginia community. "This is particularly clear," *id.*, because, as we observe such a subsidy would be targeted at a publication whose purpose is "to encourage students to consider what a personal relationship with Jesus Christ means," *Wide Awake*, Nov.-Dec. 1990, at 2—a goal plainly contemplating the "promulgat[ion]" of Christian teachings.

That *Texas Monthly* supports one wing of our analysis does not, however, release us from the obligation of testing the Rector and

1.

Lemon's first prong focuses on the "purpose that animated" the Rector and Visitors' adoption of the SAF funding guidelines, *Edwards v. Aguillard*, 482 U.S. 578, 585, 107 S.Ct. 2573, 2578, 96 L.Ed.2d 510 (1987), and asks whether that purpose was secular.

The obvious point of departure for analyzing the purpose of the guidelines is the Rector and Visitors' comments at the time of their adoption. Although the guidelines are the result of largely undocumented deliberations by the Rector and Visitors, and thus cannot be said to possess a "legislative history" as that term usually is understood, they do contain a "Student Activity Fee Statement of Purpose" relevant to our deliberations. This statement reads:

The purpose of the student activity fee is to provide financial support for student organizations that are related to the educational purpose of the University of Virginia. As a required student fee, the monies collected by the University for funding student activities are public funds which must be administered in a manner consistent with the educational purpose of the University as well as with state and federal law.

The funding guidelines themselves, which immediately follow the "Student Activity Fee Statement of Purpose" and are part of the same document, were adopted by the Rector and Visitors in an attempt to give practical effect to the SAF's goal of providing financial support for stu-

Visitors' asserted state interest in complying with the Establishment Clause. Indeed, Justice Brennan's opinion addressed Texas's Establishment Clause defense of its sales tax exemption by holding that the exemption lacked sufficient breadth to pass scrutiny under *Lemon*. See *Texas Monthly*, 489 U.S. at 8-17, 109 S.Ct. at 895-901. Because this case involves a direct governmental subsidy of religious expression rather than a mere exemption from the payment of duties, it is not directly on point with *Texas Monthly*.

dent organizations related to the University's educational purpose. In the third section of the guidelines, titled "Student Expenditures and Activities Not Eligible for Funding," the Rector and Visitors proscribed funding of "religious activities" on the ground that such activities "do not relate to the educational purpose of the University."

These statements make clear that the Rector and Visitors' aim in denying SAF funding to "religious activities" was to comply with the University of Virginia's educational function—a facially secular legislative purpose.³² Because religion is taught and studied as a subject of formal academic inquiry at the University, however, the plaintiffs contend that religious expression forms part of the institution's educational "purpose." They argue, therefore, that the University, already having admitted religious discussion formally into the academic curriculum, can have no stake in depriving such discussion of access to its coffers, even if the source of the discussion is a student organization.

We disagree. That religion is studied at the University does not mean that offering SAF funding to *Wide Awake* would promote the essentially secular "educational purpose" of the institution, or that such funding necessarily would not threaten the Establishment Clause. Since its founding by Thomas Jefferson in the second decade of the nineteenth century, the University's educational purpose has included teaching and scholarship on a wide array of subjects,³³ including the organized study of re-

³² Cf., e.g., *Bowen v. Kendrick*, 487 U.S. 589, 602-04, 108 S.Ct. 2562, 2570-72, 101 L.Ed.2d 520 (1988) (looking to "the face" of the Adolescent Family Life Act to determine whether federal grants in the area of premarital adolescent sexual relations and pregnancy authorized by the Act violate the Establishment Clause).

³³ The Code of Virginia sets forth the "branches of learning to be taught" at the University as follows:

[T]he Latin, Greek, Hebrew, French, Spanish, Italian, German, and Anglo-Saxon languages; the different branches of

ligious systems. As the plaintiffs note, while serving as Rector of the University Jefferson explained that no professorship of divinity had been established "in conformity with the principles of [the] constitution, which place all sects of religion on an equal footing," but that arrangements would be made to allow various denominations to establish schools "on the confines of the University" and to allow them access to University facilities. 19 *The Writings of Thomas Jefferson* 408 (A. Bergh ed., 1905) (report to University Visitors dated Oct. 7, 1822). That such "schools" were incorporated into the University's intellectual and academic life does not prevent the Rector and Visitors from employing funding restrictions to advance the "secular purpose" of avoiding an establishment of religion at the institution.

As we see it, it is clear from the SAF's statement of purpose that the funding guidelines were motivated primarily, if not entirely, by a legitimate secular purpose—the advancement of the University of Virginia's educational mission. We do not question the propriety of, nor the secular motivation for, the Rector and Visitors' interest in preserving University funds for the institution's educational mission. The Rector and Visitors do not dispute that, on the whole, religious concerns were not the sole motivation behind the guidelines. See *Lynch v. Donnelly*, 465 U.S. 668, 680, 104 S.Ct. 1355, 1362, 79 L.Ed.2d 604 (1984). The record gives us no reason to doubt that the Rector and Visitors' expressed purposes are "sincere and not a sham." *Id.* at 687, 104 S.Ct. at 1366. Therefore, we hold that the guidelines' proscription against funding of "religious activit[ies]" is not mo-

mathematics, pure and physical; natural philosophy, chemistry, mineralogy, including geology; the principles of agriculture; botany, anatomy, surgery and medicine; zoology, history and ideology, general grammar, ethics, rhetoric, and belles lettres; civil government, political economy, the law of nature and of nations and municipal law.

Va.Code Ann. § 23-63 (1985 & Supp.1992).

tivated wholly by an impermissible purpose, and does not offend the Establishment Clause.

2.

As is usual in Establishment Clause cases, *see, e.g., Grand Rapids School Dist. v. Ball*, 473 U.S. 373, 383-98, 105 S.Ct. 3216, 3222-30, 87 L.Ed.2d 267 (1985), the more subtle question is whether the primary effect of the guidelines restrictions is to inhibit or advance religion. *See Lemon*, 403 U.S. at 613, 91 S.Ct. at 2111.

Although we concluded above that the prohibition against funding "religious activities" denies religious speech the same access to the SAF accorded secular speech, and thus violates the Speech and Press Clause, whether "religion" is thereby inhibited or advanced is a different matter. The Rector and Visitors have not attempted to ban the publication of *Wide Awake*; indeed, they have supported its religious mission by allowing the members of Wide Awake Productions access to University meeting and printing facilities equal to that afforded all other CIOs. The University permits the plaintiffs to distribute *Wide Awake* on its grounds without limitation.

Notwithstanding its refusal to subsidize the journal directly, the University's sustenance of religion in these incidental respects does not, in our view, inhibit religion. The University's policy of allowing the members of Wide Awake Productions open access to campus facilities accords the plaintiffs ample opportunity to express their religious views, and leaves the University community as a whole free to read and consider them. The Rector and Visitors' funding policy simply declines to take the additional step of actively subscribing University funds to *Wide Awake's* particular religious perspective. Under such circumstances as these, we are unpersuaded that the primary effect of the guidelines restrictions, involving as they do only the direct allocation of public monies, would be to inhibit religion.

On the other hand, it would be difficult to view awarding SAF monies to *Wide Awake* as anything but state sponsorship—and therefore advancement—of religious belief. As the Constitution of Wide Awake Productions attests, *Wide Awake* strives to challenge Christians to live according to the faith they espouse, and to encourage students at the University to consider "what a personal relationship with Jesus Christ means." *Wide Awake*, Nov.-Dec. 1990, at 2. The journal's contents—some of which are aimed at proselytizing non-Christians—have pursued these goals indefatigably throughout the three issues of *Wide Awake* represented in the record. Using public funds to support a publication so clearly engaged in the propagation of particular religious doctrines would constitute a patent Establishment Clause violation. In the words of Justice Powell:

Aid normally may be thought to have a primary effect of advancing religion when it flows to an institution in which religion is so pervasive that a substantial portion of its functions are subsumed in the religious mission or when it funds a *specifically religious activity* in an otherwise substantially secular setting.

Hunt v. McNair, 413 U.S. 734, 743, 93 S.Ct. 2868, 2874, 37 L.Ed.2d 923 (1973) (emphasis added). Here, then, we hold that the primary effect of an SAF subsidy of *Wide Awake's* publication costs would be to advance religion.

3.

It is the third of the three *Lemon* criteria—whether the guidelines' prohibition of funding for "religious activities" fosters an excessive government entanglement with religion—that is most plainly implicated by this case. *Lemon*, 403 U.S. at 613, 91 S.Ct. at 2111. The constitutional prohibition against excessive church-state entanglement reflects James Madison's concern that secular and religious authorities must not interfere with each

other's respective spheres of choice and influence. See III Jonathan Elliott, *Debates on the Federal Constitution* 431-32, 729-31 (1891) (remarks of James Madison); *Illinois ex rel. McCollum v. Board of Educ.*, 333 U.S. 203, 212, 68 S.Ct. 461, 465-66, 92 L.Ed. 649 (1948).³⁴ The entanglement principle thus stems ultimately from fears, originally propounded by the First Amendment's principal framer, that church-state entanglement might strain the political system, compromise liberty of conscience, and, ultimately, "destroy government and downgrade religion." *Engel v. Vitale*, 370 U.S. 421, 431, 82 S.Ct. 1261, 1267, 8 L.Ed.2d 601 (1961); Laurence H. Tribe, *American Constitutional Law* § 14-11, at 1226 (2d ed. 1988) (summarizing the import of church-state entanglement).

The indirect and incidental conferral of a government benefit to religious institutions has never been thought a sufficient defect to warrant the invalidation of a state policy. *Zobrest v. Catalina Foothills Sch. Dist.*, — U.S. —, —, —, 113 S.Ct. 2462, 2466-69, 125 L.Ed.2d 1 (1993); *Widmar v. Vincent*, 454 U.S. 263, 274-75, 102 S.Ct. 269, 276-77, 70 L.Ed.2d 440 (1981); *Committee for Public Educ. & Religious Liberty v. Nyquist*, 413 U.S. 756, 775, 93 S.Ct. 2955, 2966, 37 L.Ed.2d 948 (1973). Indeed, the Supreme Court has sanctioned awards of direct non-monetary benefits to religious groups where government has created open fora to which all similarly situated organizations are invited. In *Widmar*, for example, the Court held that a state university which makes its facilities available to registered student groups may not deny equal access to a registered student group desiring to use those facilities for religious worship

³⁴ But see *Wallace v. Jaffree*, 472 U.S. 38, 98-99, 105 S.Ct. 2479, 2511-2512, 86 L.Ed.2d 29 (1985) (Rehnquist, J., dissenting) (urging that Madison did not attempt to translate Jefferson's Virginia Statute for Religious Freedom into the religion clauses of the First Amendment, and criticizing earlier Supreme Court decisions for adopting this view).

or discussion. 454 U.S. at 277, 102 S.Ct. at 278. Thus, although religious groups may directly benefit from access to university facilities, a state university may not discriminate against them based on the content of their speech.

Direct monetary subsidization of religious organizations and projects, however, is a beast of an entirely different color. A proper respect for the Establishment Clause compels the Rector and Visitors to pursue a course of "neutrality" toward religion. Yet providing SAF monies to defray the publication costs of *Wide Awake* inevitably would advance *Wide Awake's* Christian mission: "to encourage students to consider what a personal relationship with Jesus Christ means." *Wide Awake*, Nov.-Dec. 1990, at 2. The potentially divisive political effect of such funding is a factor of recurring significance in the Supreme Court's jurisprudence surrounding *Lemon's* "excessive entanglement" prong. As Justice Black emphasized in *Everson v. Board of Education*, 330 U.S. 1, 67 S.Ct. 504, 91 L.Ed. 711 (1947), competition among religious sects for political and religious supremacy has occasioned considerable civil strife throughout history, "generated in large part" by competing efforts to gain or maintain the support of government. *Id.* at 8-9, 67 S.Ct. at 507-509. As we see it, the "potential for political divisiveness related to religious belief and practice" would be aggravated if the University were to fund the publication of *Wide Awake*. The possibility of a continuing annual appropriation for the benefit of a single religion carries the potential for seriously divisive political consequences at the University of Virginia. The prospect of such divisiveness, as Justice Powell has admonished, is a "warning signal" the Rector and Visitors would ignore at their, and the University's, peril. *Nyquist*, 413 U.S. at 798, 93 S.Ct. at 2978.

Because *Wide Awake* is a journal pervasively devoted to the discussion and advancement of an avowedly Christian theological and personal philosophy, for the Univer-

sity to subsidize its publication would, we believe, send an unmistakably clear signal that the University of Virginia supports Christian values and wishes to promote the wide promulgation of such values. Since offering SAF funds to the members of Wide Awake Productions would excessively entangle the University of Virginia with the propagation of the Christian religion, we hold that the Rector and Visitors have proved the existence of a compelling state interest in complying with the Establishment Clause. This compelling interest justifies the Rector and Visitors' decision to promulgate guidelines excluding the membership of Wide Awake Productions from access to SAF monies.

E

It remains for us to consider whether the funding guidelines' proscription against "religious activities" is sufficiently circumscribed to survive the strictest judicial scrutiny.

The Supreme Court has held that a government policy is "narrowly tailored" if it "targets and eliminates no more than the exact source of the 'evil' it seeks to remedy." *Frisby v. Schultz*, 487 U.S. 474, 485, 108 S.Ct. 2495, 2503, 101 L.Ed.2d 420 (1988). If the guidelines' "religious activities" proscription had a substantial deleterious effect on the ability of student organizations to engage in meaningful religious expression, the plaintiffs' contention that the proscription is not narrowly tailored might carry considerable force. Yet it is difficult for us to conceive how the Rector and Visitors may avoid offending the Establishment Clause without extending the prohibition on SAF funding to all "religious activities." Because the First Amendment forbids government to promulgate policies "respecting an establishment of religion," government is left no choice but to forswear financial support of the myriad forms of religious endeavor in which a student organization might engage. Hence, we believe that the guidelines' declaration that student organizations involved in "religious activities" as that

phrase is defined³⁵ is not "substantially broader than necessary" to achieve the Rector and Visitors' legitimate constitutional ends, *City Council v. Taxpayers for Vincent*, 466 U.S. 789, 808, 104 S.Ct. 2118, 2130, 80 L.Ed.2d 772 (1984), and thus satisfies the requirement of narrow tailoring.

F

In summary, we conclude that the Rector and Visitors' refusal to permit funding of "religious activities" places a presumptively unconstitutional condition upon access to government benefits in violation of the Free Speech and Press Clause of the First Amendment. We further conclude, however, that the Rector and Visitors have shown the existence of a compelling state interest in (1) foregoing funding awards that would have the primary effect of advancing religion at the University of Virginia, and (2) preserving the University of Virginia from an excessive entanglement with religion. Finally, the Rector and Visitors' restriction against funding "religious activities" is narrowly tailored to achieve this compelling state interest. Having survived the strictest judicial scrutiny, the funding restriction cannot be labelled constitutionally invalid under the Speech and Press Clause.

IV

The district court rejected the plaintiffs' contention that the guidelines' proscription of funding for "religious activities" violates the Free Speech and Press Clause by excluding them from the "limited public forum" represented by the SAF. After careful and reasoned consideration of the governing precedents, see *Cornelius v. NAACP Legal Defense & Educ. Fund, Inc.*, 473 U.S. 788, 797, 105 S.Ct. 3439, 3446, 87 L.Ed.2d 567 (1985); *Perry Educ. Ass'n v. Perry Local Educators' Ass'n*, 460 U.S. 37, 44, 103 S.Ct. 948, 954, 74 L.Ed.2d 794 (1983), the court concluded that the Rector and Visitors' systematic, pur-

³⁵ See *supra* note 2.

poseful exclusion of certain student groups from access to SAF funds indicated that the Rector and Visitors intended the SAF to be a nonpublic forum. See *Rosenberger v. Rector & Visitors of Univ. of Va.*, 795 F.Supp. 175, 178-81 (W.D.Va.1992) (mem.)

We agree that the Rector and Visitors have not created a limited public forum by awarding SAF funds only to those student organizations which, in the view of University authorities, advance the institution's essentially secular educational mission although we do so for a different reason. As laid out in part III, *supra*, we believe that the proper analysis of this case lies under the line of authority dealing with content-based discrimination relating to government-generated benefits or burdens. The long line of public forum cases have taken "forum" in a fairly literalistic way involving physical space, and we do not see how it advances the jurisprudence to wrench that word out of its accepted form to encompass this type of case already subject to First Amendment scrutiny.

V

We finally turn to the plaintiffs' contention that the guidelines' prohibition against funding of "religious activities" discriminates against them in contravention of the Equal Protection Clause of the Fourteenth Amendment (1) by denying them benefits which other CIOs engaged in religious speech and activities have received, and (2) because the restrictions serve no compelling state interest, and are not narrowly tailored to satisfy whatever interest the Rector and Visitors may have in denying funding to "religious activit[ies]."

A

The Equal Protection Clause of the Fourteenth Amendment provides that no state shall "deny to any person within its jurisdiction the equal protection of the laws." U.S. Const. amend. XIV, § 1, cl. 4. The plaintiffs contend that the Rector and Visitors have infringed their

rights under the Equal Protection Clause by awarding SAF monies to the Muslim Students Association, the Jewish Law Students Association, and the C.S. Lewis Society while denying funding to Wide Awake Productions.

To establish an equal protection violation, a plaintiff must show discriminatory intent as well as disparate effect. See *Crawford v. Board of Educ.*, 458 U.S. 527, 544, 102 S.Ct. 3211, 3221, 73 L.Ed.2d 948 (1982); *Arlington Heights v. Metropolitan Hous. Dev. Corp.*, 429 U.S. 252, 265, 97 S.Ct. 555, 563, 50 L.Ed.2d 450 (1977); *Washington v. Davis*, 426 U.S. 229, 239, 96 S.Ct. 2040, 2047, 48 L.Ed.2d 597 (1976); *Irby v. Virginia State Bd. of Elections*, 889 F.2d 1352, 1355 (4th Cir.1989), *cert. denied*, 496 U.S. 906, 110 S.Ct. 2589, 110 L.Ed.2d 270 (1990). Upon careful review of the summary judgment record, the district court found no evidence to indicate that the University's denial of SAF funding to Wide Awake Productions was the product of discriminatory intent. Because this finding is not contested by the plaintiffs on appeal, we are constrained to hold that the district court's factual findings on the point are not tainted with clear error. Moreover, the plaintiffs' failure to argue the existence of discriminatory intent as a matter of law on appeal deprives us of jurisdiction to consider the merits of their equal protection claim, and compels us to affirm the district court's decision to grant summary judgment in favor of the Rector and Visitors.

B

For the reasons stated in part III, *supra*, we already have held that the Rector and Visitors' refusal to fund "religious activities" serves the compelling state interest of preserving the University of Virginia from an excessive entanglement with religion, and is narrowly tailored to achieve that interest. We therefore need not consider this question again for purposes of the Fourteenth Amendment. The Rector and Visitors' stake in avoiding an ex-

cessive entanglement with religion is equally strong in all constitutional contexts, including that of the Equal Protection Clause, if, as we hold, no prima facie violation of the plaintiffs' equal protection rights exists. This assignment of error therefore warrants no further discussion.

VI

For the foregoing reasons, the judgment of the district court is hereby

AFFIRMED.

APPENDIX B

UNITED STATES DISTRICT COURT
W.D. VIRGINIA
CHARLOTTESVILLE DIVISION

Civ. A. No. 91-0036-C

RONALD W. ROSENBERGER, as a member of
Wide Awake Productions, *et al.*,
v. *Plaintiffs,*

THE RECTOR AND VISITORS OF THE
UNIVERSITY OF VIRGINIA, *et al.*,
Defendants.

May 20, 1992

MEMORANDUM OPINION

MICHAEL, District Judge.

In this case, the court is asked to resolve the difficult question of whether a "student activities fund," comprised of mandatory student fees, constitutes a limited public forum. For the reasons set forth below, the court concludes that the answer to this riddle is "no."

I.

In September of 1990, plaintiff Ronald W. Rosenberger, an undergraduate student at the University of Virginia (the University), joined with other University students to form Wide Awake Productions (WAP). WAP is an unincorporated association officially recognized by

the University as a Contracted Independent Organization (CIO). This recognition is given to all student organizations which execute an annual agreement with the University and meet certain minimal requirements.¹ The benefit of becoming a CIO is that such organizations are given access to University facilities; i.e. meeting rooms, computer terminals, etc.

WAP publishes Wide Awake Magazine (Wide Awake), a non-profit journal written, edited and published by the student members of WAP. Mr. Rosenberger serves as the magazine's publisher, while other named plaintiffs include members of the management and editorial staff. To date, three issues of Wide Awake have been published, with approximately 5,000 copies of each issue distributed free of charge to students on the University campus.

In January of 1991, WAP submitted an application for funding from the University in the amount of \$5,862.00 to offset the cost of publishing its magazine. Specifically, WAP sought funding from monies deposited in the University's Student Activities Fund (SAF). The SAF is funded by a mandatory student activities fee collected from every full-time student at the University. The activity fee is designed to provide financial support for student organizations related to the educational purposes of the University.

The defendants in this action, the Rector and Board of Visitors of the University (the Board)² have ultimate

¹ There are four general criteria for CIO status: (1) at least fifty-one percent of the group's members must be students; (2) the group's officers must all be full-time, fee-paying students; (3) the group must keep an updated copy of its constitution on file with the University; and (4) the group must sign an anti-discrimination disclaimer.

² The individual Board members and Mr. Robert Stump, Associate Dean of Students, are named defendants and are being sued in their official capacities.

responsibility for the operation of the SAF. The Board has delegated the responsibility of allocating SAF funds to the University's Student Council. The Student Council disburses SAF funds to those CIOs deemed eligible for funding as determined by Guidelines issued by the Board. These Guidelines prohibit several categories of student organizations from obtaining SAF funds. Ineligible groups include fraternities and sororities, political and religious organizations, and those groups whose membership is exclusionary in nature. Further, the following expenditures and activities are also excluded by the Guidelines: (1) honoraria or similar fees; (2) religious activities; (3) social entertainment or related expenses; (4) philanthropic contributions and activities; and (5) political activities.

A CIO seeking SAF monies must first submit a request for funding to the Student Council Appropriations Committee, a subcommittee of the full Student Council. As noted earlier, WAP made its first and only request for funding in January of 1991. The Chairman of the Student Council denied the funding request because the Appropriations Committee determined that publication of Wide Awake constituted a "religious activity."³ WAP appealed this decision to the full Student Council, which affirmed the Appropriation Committee's denial of funding. WAP pursued all internal means of appeal before filing suit in this court on July 11, 1991. The plaintiffs allege that the denial of SAF benefits violates their rights to freedom of speech, freedom of press, freedom of association, free exercise of religion, and equal protection of the laws in violation of the United States Constitution, the

³ Mr. Rosenberger admits that Wide Awake is written from a "religious perspective." Further, Article 1 of WAP's constitution states that the purpose of the organization is to: (1) publish a magazine of philosophical and religious expressions; (2) facilitate discussion which fosters an atmosphere of sensitivity to and tolerance of Christian viewpoints; and (3) provide a unifying focus for Christians of multicultural backgrounds.

Virginia Constitution, and the Virginia Act for Religious Freedom. Plaintiffs have also set forth a cause of action pursuant to 42 U.S.C. Section 1983.

On November 12, 1991, the plaintiffs filed a motion for summary judgment, asking this court for a declaratory judgment that the defendants had indeed violated the plaintiff's [sic] constitutional rights. The defendants filed a cross motion for summary judgment and both sides appeared before this court for oral argument on these motions. Both sides agree, with minor exceptions addressed herein, that there are no genuine issues of material fact in conflict. Thus, this matter is ripe for disposition.⁴

II. The Freedom of Speech Claims

The preliminary question for this court to resolve is whether the University's SAF qualifies as a "limited public forum" as the plaintiffs assert, or whether the SAF is in fact a "non-public" forum, as the defendants argue. This determination is crucial as it dictates the degree of scrutiny to be used by this court in reviewing the Board of Visitor Guidelines.⁵ See *Perry Educ. Assn. v. Perry Local Educators' Assn.*, 460 U.S. 37, 44, 103 S.Ct. 948, 954, 74 L.Ed.2d 794 (1983) ("The existence of a right of access to public property and the standard by which limitations upon such a right must be evaluated differ depending on the character of the property at issue.")

⁴ The defendants have filed a motion to dismiss the plaintiffs' claim for damages under 42 U.S.C. § 1983 on the grounds that such a claim is precluded by the Eleventh Amendment to the United States Constitution. The court need not address this issue as it has determined that all of the plaintiffs' claims must fail, as a matter of law.

⁵ The plaintiffs have launched a general assault on the propriety of certain exclusion in the Guidelines; i.e. those prohibiting the funding of religious organizations and activities. Alternatively, the plaintiffs set forth an equal protection claim by arguing that the Guidelines have not been applied in an even-handed manner. The court will address the equal protection issue in part IV of this opinion.

See also *Cornelius v. NAACP Legal Defense & Educational Fund, Inc.*, 473 U.S. 788, 797, 105 S.Ct. 3439, 3446, 87 L.Ed.2d 567 (1985) ("the extent to which the Government may limit access [to a forum] depends on whether the forum is public or nonpublic.")

The phrase "limited public forum" describes one of three categories of fora identified by the Supreme Court in *Perry*, *supra*.⁶ A limited public forum is property "which the State has opened for use by the public even if it was not required to create the forum in the first place." *Perry*, 460 U.S. at 45, 103 S.Ct. at 955 citing *Widmar v. Vincent*, 454 U.S. 263, 102 S.Ct. 269, 70 L.Ed.2d 440 (1981). A state may only restrict access to limited public fora if such a restriction is narrowly drawn to effectuate a compelling state interest. *Perry*, 460 U.S. at 46, 103 S.Ct. at 955. A different category of property consists of public property which is not "by tradition or designation a forum for public communication." *Id.* Not surprisingly, this type of property is labeled "nonpublic." Access to such a forum can be limited by restrictions which are "reasonable and [are] not an effort to suppress expression merely because the public officials oppose the speaker's view." *Cornelius*, 473 U.S. at 800, 105 S.Ct. at 3448 quoting *Perry*, 460 U.S. at 46, 103 S.Ct. at 955.

It should be apparent from the preceding discussion that the label affixed to the University's SAF (either limited public forum or nonpublic forum) will have a rather profound impact on whether the Board's Guidelines will be upheld by this court. The plaintiffs rely heavily on *Gay and Lesbian Students Assn. v. Gohn*, 850 F.2d 361 (8th Cir.1988) for the proposition that "compulsory student activities fees" constitute a limited public forum. In *Gohn*, the Gay and Lesbian Students Association (GLSA) at the University of Arkansas at Fayetteville challenged the decision of the Student Senate denying

⁶ The plaintiffs do not argue that the SAF is a traditional public forum.

funding to the group. The money was to be paid out of funds from "tuition, state tax money, and general fees collected from students." *Id.* at 361. In finding that the denial of funding violated GLSA's First Amendment rights, the court stated:

we hold that a public body that chooses to fund speech or expression must do so even-handedly, without discriminating among recipients on the basis of their ideology. The University need not supply funds to student organizations; but once having decided to do so, it is bound by the First Amendment to act without regard to the content of the ideas being expressed.

Id. at 362.

This court does not read *Gohn* at holding that a student activities fund is a limited public forum. *Gohn* merely stands for the proposition that "content-based discrimination can be justified only if the government demonstrates that its regulation is narrowly drawn and is necessary to effectuate compelling state interests." *Id.* at 367 citing *Widmar*, 454 U.S. at 270, 102 S.Ct. at 274. The plaintiffs read this citation to *Widmar* and the mention of a "compelling state interest" as a signal that the Eighth Circuit considered the student activity fee as creating a limited public forum, thus requiring the use of a heightened level of scrutiny. This reading of *Gohn* stretches the Eighth Circuit's opinion beyond the breaking point.

The mere mention of heightened scrutiny does not in and of itself indicate that the court is dealing with either a traditional or a limited public forum. Heightened scrutiny can also be applied even if the forum is characterized as nonpublic. The Supreme Court recognized this in *Perry* by stating:

Public property which is not by tradition or designation a forum for public communication is governed by different standards. We have recognized that the 'First Amendment does not guarantee access

to property simply because it is owned or controlled by the government.' In addition to time, place, and manner regulations, the State may reserve the forum for its intended purposes, communicative or otherwise, as long as the regulation on speech is reasonable and not an effort to suppress expression merely because the public officials oppose the speaker's view.

460 U.S. at 46, 103 S.Ct. at 955 (citations omitted).

This passage from *Perry* indicates that viewpoint discrimination will *rarely* be tolerated, regardless of whether the restriction applies to public, limited or nonpublic fora. Further, a careful reading of *Gohn* indicates that the Eighth Circuit considered the student service funds as creating a nonpublic forum. Specifically, the court noted that:

We realize that the District Court made no explicit finding as to the reason for denial of funding, that this is a question of fact, and that appellate courts are not fact-finding forums. We think, though, that the District Court's opinion, when read in full and in context, includes an implicit finding that funds were denied because of distaste for the GLSA's ideas. Otherwise, there would have been no need to resort to the legal doctrines (e.g. that there is no "right" to public money) used by the Court to justify dismissing the complaint. *A finding of fact that funds were denied for some content-neutral reason would have sufficed completely to dispose of the case.* In any event, the facts of this case are so obvious that a remand for an explicit finding would be a waste of time. This record leaves no reasonable doubt that funds were denied because of disagreement with GLSA's speech. (emphasis added).

Gohn, 850 F.2d at 367. Here, the court indicates that GLSA would have lost its case had the University of Arkansas put forth a content neutral reason for denying

funding. This is not the standard used in limited public forum cases, but instead is the standard used in non-public forum situations.

This court also looks to *Cornelius*, *supra* for guidance as to whether the SAF qualifies as a public forum. Here, the Supreme Court began its forum analysis by noting that, "[t]he government does not create a public forum by inaction or by permitting limited discourse, but only by intentionally opening a nontraditional forum for public discourse." *Cornelius*, 473 U.S. at 802, 105 S.Ct. at 3449 citing *Perry*, 460 U.S. at 46, 103 S.Ct. at 955. (emphasis added). In *Cornelius*, the Supreme Court held that the Federal Government could exclude legal defense and political advocacy organizations from participation in the Combined Federal Campaign (CFC), a charity drive directed at federal employees. The Court held that the campaign was a nonpublic forum because:

[t]he Government's consistent policy has been to limit participation in the CFC to "appropriate" voluntary agencies and to require agencies seeking admission to obtain permission from federal and local Campaign officials . . . The Civil Service Commission and, after 1978, the Office of Personnel Management developed extensive criteria to limit access to the Campaign to those organization considered appropriate. Such selective access, unsupported by evidence of a purposeful designation for public use, does not create a public forum.

Cornelius, 473 U.S. at 804-5, 105 S.Ct. at 3450 (citations omitted).

In the present situation, the University has limited eligibility for SAF monies to those organizations deemed "appropriate." Religious organizations are but one of several groups excluded from participation in the SAF because the Board of Visitors has decided that such groups do not further the educational purposes of the University. This exclusion of religious groups and religious activities has been in effect since the establish-

ment of the Guidelines in 1970, and has survived revisions in 1973, 1978, 1980 and 1991.

The plaintiffs attempt to counter this fact by arguing that "the defendants created the SAF mechanism to encourage the exchange of opinions and viewpoints among students at the University of Virginia in furtherance of the educational mission of the University." In support of this assertion, the plaintiffs direct the court to the page 1 of the Guidelines. The Guidelines, in pertinent part, read as follows:

STATEMENT OF PURPOSE

The purpose of the student activity fee is to provide financial support for student organizations that are related to the educational purpose of the University of Virginia. As a required student fee, the monies collected by the University for funding student activities are public funds which must be administered in a manner consistent with the educational purpose of the University as well as with state and federal law.

This court does not read this passage to indicate a desire on the part of the Board of Visitors to "encourage the exchange of opinions and viewpoints." Rather, the Guidelines suggest that the SAF was established to fund only those CIOs whose activities contributed to the educational focus of the University. The Board of Visitors has not opened the SAF coffers to all CIOs;⁷ some groups, such as WAP, were excluded simply because the Board of Visitors determined that their activities were not consistent with the goals of the University. The consistent, purposeful exclusion of certain groups indicates that the SAF is indeed a nonpublic forum.

⁷ For the academic year 1990-91, 343 student organizations qualified as CIOs. Of these 135 applied for SAF funds and 118 were actually allotted SAF monies.

This conclusion is further supported by the Supreme Court's reasoning in *Perry, supra*. The forum in *Perry* consisted of an interschool mailing system used to facilitate communication between various teachers. A teacher's union challenged the local Board of Education's decision denying the union access to the system. The plaintiff union argued that the school mail facilities became a limited public forum because other private, non-school-connected groups had previously been given access to the system. *Perry*, 460 U.S. at 47, 103 S.Ct. at 956. In rejecting this contention, the Court stated:

The use of the internal school mail by groups not affiliated with the schools is no doubt a relevant consideration. If by policy or by practice the Perry School District has opened its mail system for indiscriminate use by the general public, then PLEA could justifiably argue a public forum has been created. This, however, is not the case. As the case comes before us, there is no indication in the record that the school mailboxes and interschool delivery system are open for use by the general public. Permission to use the system to communicate with teachers must be secured from the individual building principal. There is no court finding or evidence in the record which demonstrates that this permission has been granted as a matter of course to all who seek to distribute material. We can only conclude that the schools do allow some outside organizations such as the YMCA, Cub Scouts, and other civic and church organizations to use the facilities. This type of selective access does not transform government property into a public forum.

Id.

Similarly, the fact that the University has given certain CIOs access to SAF funds does not lead to the conclusion that such selective access transforms the SAF into a limited public forum.

Finally, the plaintiffs [sic] reliance on *Widmar* is misplaced. The present case might very well be resolved in plaintiffs [sic] favor if the University had denied CIO status to WAP. The defendants themselves take the position that access to certification as a CIO is a limited public forum. This is because only CIO's have access to University facilities.⁸ This is a far cry from the present situation and is the reason why this court finds *Widmar* factually distinguishable from the case at hand.

Having concluded that the SAF is a nonpublic forum, this court must now determine whether the Board's Guidelines constitute restrictions which are "reasonable and not an effort to suppress expression merely because public officials oppose the speaker" [sic] views." *Perry*, 460 U.S. at 46, 103 S.Ct. at 955. The defendants offer two basic rationales for excluding religious organizations such as WAP from SAF eligibility. First, the University has only limited funds to disburse and must therefore limit funding to those activities which it determines advance its educational mission. Second, the ineligibility of religious organizations and activities is justified based on the Federal and State constitutional mandate of state neutrality toward religion.

Although fiscal restraints are pertinent, this court may resolve the reasonableness of the Guidelines by reference to the University's second proffered reason. The parties devote considerable time in their respective briefs addressing the obvious Establishment Clause issues raised

⁸ The plaintiffs allege that they have been denied access to certain University facilities yet have presented no evidence, beyond Mr. Rosenberger's affidavit, to [sic] support of this claim. For instance, there is no assertion that WAP has even attempted to use University facilities or computers. The defendants have submitted the affidavit of Mr. Stump, who swears that "[a]s a CIO, Wide Awake has been and is accorded the same access and use of University facilities as other CIOs." The court has considered this conflicting evidence in the light most favorable to the plaintiffs, but comes to the conclusion that WAP has not raised a genuine issue of material fact as to this issue.

in this case. However, this court need not resolve this issue on the facts of this case. For even if the plaintiffs were correct in their assertion that funding Wide Awake would not violate Federal or State law, it is not the province of this court to second guess the legal judgments made by the University. So long as the University's Establishment Clause fears are reasonable, the Guideline restriction must stand. Given the complexity of the law in this regard, this court has little trouble in finding that the Guideline restriction is a reasonable limit to access to SAF funds. Further, the restriction is a reasonable response by the University to prevent excessive entanglement with religion.

The court also finds that the Guideline limitations do not result in viewpoint discrimination against religious organizations such as WAP. The plaintiffs seem to argue that any across the board restriction applied to a religious group results in content based discrimination. This may be true in the abstract, but this court, and the University, must live in the real world. It could be argued that every decision by the University results in viewpoint discrimination. On this point, the court finds Justice Stevens' comments in his concurring opinion in *Widmar* to be highly relevant. Justice Stevens states that:

In performing their learning and teaching missions, the managers of a university routinely make countless decisions based on the content of communicative materials. They select books for inclusion in the library, they hire professors on the basis of their academic philosophies, they select courses for inclusion in the curriculum, and they reward scholars for what they have written. In addition, in encouraging students to participate in extracurricular activities, they necessarily make decisions concerning the content of those activities.

Widmar, 454 U.S. at 278, 102 S.Ct. at 278.

In brief, the plaintiffs' complaints about the Guidelines are more properly directed at the wisdom and not the

legality of the restrictions. This is because the court finds, as a matter of law, that the Board's Guidelines are reasonable and do not violate any of the plaintiffs' constitutional rights.⁹

III. The Free Exercise of Religion Claims

The heart of the plaintiffs' claim is that without SAF monies WAP must devote more time to fund raising and less time to publishing its religious speech. Thus, the denial of funding burdens the plaintiffs' free exercise of religion by diverting energy away from WAP's main goal: challenging Christians to live according to their faith.

Both sides agree that this court's analysis should begin with *Dole v. Shenandoah Baptist Church*, 899 F.2d 1389 (4th Cir.) cert. denied, — U.S. —, 111 S.Ct. 131, 112 L.Ed.2d 99 (1990). Here, the Fourth Circuit stated that in reviewing a free exercise claim, a court should:

. . . examine the burden on the exercise of . . . [plaintiff's] sincerely held religious beliefs, then determine whether the state presents a compelling justification for imposing this burden, and finally balancing the burden on free exercise against the state's . . . [compelling interest].

Id. at 1397.

In the present case, it is difficult for this court to identify any burden of constitutional magnitude that has been imposed on the plaintiffs. It is logical to assume that publishing a magazine is easier if someone else pays the bills. However, if this incidental burden was of constitutional significance, the free exercise clause would be implicated in every funding decision involving a religious organization. A review of the record indicates that WAP is un-

⁹ In their briefs and in oral argument, the parties did not separately address plaintiffs' claims under Federal and State law. Although the court has focused on Federal Constitutional law, the preceding analysis applies to the plaintiffs' claims based on the Virginia Constitution and the Virginia Act for Religious Freedom.

able to point to any facts making their burden unique from other CIOs which have been denied SAF monies. Political groups and fraternities and sororities share a common plight with WAP: none of these groups is eligible for funding. The only distinguishing factor is that WAP engages in religious activity. However, WAP has not cited this court to any authority indicating that religious organizations should receive preferential access to a nonpublic forum.

The plaintiffs' attempt to bridge this gap in their argument by asserting that "freedom of expression may not be infringed by denying a privilege." WAP relies on *Sherbert v. Verner*, 374 U.S. 398, 404, 83 S.Ct. 1790, 1794, 10 L.Ed.2d 965 (1963) to support this position. This court does not read *Sherbert* as broadly as do the plaintiffs. In *Employment Div., Dept. of Human Resources v. Smith*, 494 U.S. 872, 883, 110 S.Ct. 1595, 1602, 108 L.Ed.2d 876 (1990), the Court stated that, "[u]nder the *Sherbert* test, governmental actions that substantially burden a religious practice must be justified by a compelling governmental interest." (emphasis added). This language itself indicates that a burden must be substantial before the court will consider whether the state has a compelling reason for the restriction.¹⁰ The Fourth Circuit appears to have adopted this position in *Goodall v. Stafford County School Board*, 930 F.2d 363 (4th Cir.) cert. denied — U.S. —, 112 S.Ct. 188, 116 L.Ed.2d 149 (1991). Here the court stated that

[w]here the state conditions receipt of an important benefit upon conduct proscribed by a religious faith, or where it denies such a benefit because of conduct mandated by religious belief, thereby putting substantial pressure on an adherent to modify his behavior and to violate his beliefs, a burden upon re-

¹⁰ The court notes that the plaintiffs have not identified a religious practice which is infringed by the Board's Guidelines. Apparently the plaintiffs contend that publishing a religious magazine is itself a religious practice.

ligion exists. While the compulsion may be indirect, the infringement upon free exercise is nonetheless substantial.

Goodall, 930 F.2d at 369 quoting *Thomas v. Review Board of Indiana Employment Security Division*, 450 U.S. 707, 717-18, 101 S.Ct. 1425, 1432, 67 L.Ed.2d 624 (1981).¹¹

Even if this court were to consider the Board's Guidelines as imposing a burden on WAP's free exercise of religion, WAP is still bound by the Fourth Circuit's holding in *Goodall*, *supra*, that avoidance of a violation of the Establishment Clause constitutes a compelling state interest. *Goodall*, 930 F.2d at 370. Further, balancing the minimal burden on the plaintiffs with the defendants [sic] rationale for the Guidelines indicates that the scale must come down in favor of the defendants.

IV. The Equal Protection Claims

The last issue for the court to resolve in [sic] the plaintiffs' claims that the Guidelines have been applied in less than an even-handed manner. Put somewhat differently, the plaintiffs contend that they have been denied equal protection of the laws because other "religious groups" have been given SAF monies. As evidence of this unequal treatment, WAP focuses on the funding decisions made [sic] with respect to other CIOs.

The defendants seek to counter this argument by citing this court to *Irby v. Virginia State Board of Elections*, 889 F.2d 1352 (4th Cir.1989), cert. denied 496 U.S. 906, 110 S.Ct. 2589, 110 L.Ed.2d 270 (1990). *Irby* stands for the proposition that a plaintiff challenging a facially neutral statute with an equal protection claim must show not only disparate effect, but also discriminatory intent. Thus, the defendants do not argue that

¹¹ The court also notes that with few exceptions, *Sherbert* has been limited to those cases involving the denial of unemployment compensation benefits. See *Smith*, *supra*, 494 U.S. at 883, 110 S.Ct. at 1602.

the Student Council's funding decisions are always correct. Instead, the defendants argue that there is no evidence to suggest that the Student Council's decision to deny funding to WAP resulted from discriminatory intent.

In their reply brief, the plaintiffs do not dispute the defendants statement of the law nor the facts of this issue. The court has reviewed the entire record independently, and cannot find any evidence to indicate that the decision to deny funding to WAP was based on discriminatory intent. Accordingly, summary judgment in favor of the defendants is appropriate.

In summary, the court holds that access to the SAF is a nonpublic forum upon which the University has imposed reasonable restrictions. These restrictions do not impose an impermissible burden on the plaintiffs' exercise of their rights as guaranteed by either the Federal or State Constitutions, or the Virginia Act for Religious Freedom. Thus, the court denies the plaintiffs' motion for summary judgment and grants the defendants' cross motion for summary judgment. An appropriate order shall this day issue.

ORDER

For the reasons set forth in the accompanying memorandum opinion, it is hereby

ADJUDGED AND ORDERED

that:

1. The plaintiffs' motion for summary judgment is denied;
2. The defendants' cross motion for summary judgment is granted.

This case shall be dismissed and stricken from the docket of the court. The Clerk of the Court is hereby directed to send a certified copy of this Order to all counsel of record.

APPENDIX C

Filed May 23, 1994

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

No. 92-1736

CA-91-36-C

RONALD W. ROSENBERGER, as a member of Wide Awake Productions; WIDE AWAKE PRODUCTIONS; WIDE AWAKE MAGAZINE; GREGORY W. MOURAD; ROBERT J. PRINCE,
Plaintiffs-Appellants,

v.

THE RECTOR AND VISITORS OF THE UNIVERSITY OF VIRGINIA; EDWARD E. ELSON; W. L. LYONS BROWN, JR.; ROBERT G. BUTCHER, JR.; N. THOMAS CONNALLY; HOVEY S. DABNEY; WALLER H. HORSLEY; J. THOMAS HULVEY; EVANS B. JESSEE; PATRICIA M. KLUGE; ARNOLD H. LEON; LEIGH B. MIDDLEDITCH, JR.; ELIZABETH D. MORIE; FREDDIE W. NICHOLAS, SR.; S. BUFORD SCOTT; JESSE B. WILSON, III; THOMAS E. WORRELL, JR.; ADAM S. ARTHUR; ALEXANDER G. GILLIAM, JR.; RONALD J. STUMP,

Defendants-Appellees.

On Petition for Rehearing with
Suggestion for Rehearing In Banc

The appellants filed a petition for rehearing with suggestion for rehearing in banc.

Judge Widener requested a poll on the suggestion for rehearing in banc, and a majority of the judges voted to deny rehearing in banc. Judges Widener, Niemeyer and Luttig voted to rehear the case in banc, and Judges Ervin, Russell, Hall, Phillips, Murnaghan, Wilkins, Hamilton, Williams, Michael and Sprouse voted against rehearing in banc.

Judge Wilkinson disqualified himself and did not vote.

The Court denies the petition for rehearing with suggestion for rehearing in banc.

Entered at the direction of Judge Ervin for the Court.

For the Court,

/s/ Bert M. Montague
Clerk

APPENDIX D

STUDENT ACTIVITY FEE STATEMENT OF PURPOSE AND FUNDING GUIDELINES

PASSED BY ACTION OF THE BOARD OF
VISITORS ON JANUARY 31, 1991

STATEMENT OF PURPOSE:

The purpose of the student activity fee is to provide financial support for student organizations that are related to the educational purpose of the University of Virginia. As a required student fee, the monies collected by the University for funding student activities are public funds which must be administered in a manner consistent with the educational purpose of the University as well as with state and federal law.

STUDENT ACTIVITIES ELIGIBLE FOR FUNDING:

The Rector and Visitors have determined that activities of the student organizations in the following categories relate to the educational purpose of the University and thus are eligible for funding.

1. Special Status Student Organizations charged by the Board of Visitors;
2. co-curricular organizations which are not administered by University departments or units;
3. club sports;
4. student news, information, opinion, entertainment, or academic communications media groups;
5. cultural organizations;
6. fine arts organizations;
7. Madison House;
8. hobby organizations;

9. non-political groups whose predominate purpose is to present speakers on topics of probable general interest to the University;
10. the Student Legal Services; and
11. service organizations.

STUDENT ORGANIZATIONS NOT ELIGIBLE FOR FUNDING:

The Board of Visitors has determined that fraternities, sororities, honor societies, political organizations, religious organizations, and special status student organizations not charged by the Board of Visitors are ineligible for funds from the student activities fees. An organization is also ineligible when admission is exclusionary in nature and not open to all students or if membership is restricted by reason of age, citizenship, color, disability, gender, race, religion, national origin, political affiliation, sexual orientation, or status as a disabled veteran or veteran of the Vietnam era. Notwithstanding these requirements, a student organization may restrict membership based on ability to perform the activities related to the organization's purpose. In determining cases of discrimination, it is not sufficient to look merely to the constitution of an organization but to its actual practices and operations.

STUDENT EXPENDITURES AND ACTIVITIES NOT ELIGIBLE FOR FUNDING:

The Board of Visitors has further determined that the following expenditures and activities do not relate to the educational purpose of the University and thus are not eligible for funding:

1. honoraria or similar fees;
2. religious activities;
3. social entertainment or related expenses;

4. philanthropic contributions and activities;
5. political activities;
6. activities which would jeopardize the University's tax exempt status.

FUND ALLOCATION AND APPEAL PROCEDURES/PROCESS:

The Student Activities Committee chaired by the designee of the Vice President for Student Affairs is charged with the authority and responsibility for supervision of the student activities fee fund. With respect to distributions from the fund, Student Council is responsible for allocations to eligible student organizations. The ceiling on the aggregate amount allocated to all such organizations shall be the current balance in the student activities fees fund. The allocation process follows procedures established by Student Council which are intended to maximize the use of the funds and are consistent with the above guidelines. The Student Council Appropriations Committee is responsible for following these procedures and making the recommendations to the Student Council Representative Body on the funding requests. In providing student organizations with appropriations deemed needed, the Student Council Appropriations Committee shall be further guided by such criteria as the size of the group, the University wide benefit of the group's activities, and the group's level of financial self-sufficiency. The committee is encouraged but is not required to appropriate all of the available fund balance.

The Appropriations Committee recommended allocation to a student organization may be appealed to the Student Council Representative Body by any student or student organization. The Student Activities Committee is the next and final appeal for any budget reviewed and, in some cases, adjusted by the Student Council Representative Body. In addition, the Student Activities Com-

mittee may examine on its own motion any student organization's allocation request submitted to the Student Council.

After the allocations are finalized, the Student Council Vice President for Student Organizations writes the chair of the Student Activities Committee requesting that the allocations for those funded organizations be released to the Student Activities Business Manager. When the Student Activities Business Manager receives the funds, they are deposited into a demand deposit account. Expenditures from the allocations can be made provided the student organization completes the proper authorization forms with the Student Activities Business Manager. The student organizations receive their allocation on a per semester basis for payment of expenses of activities conducted during the fall and spring semesters only.

Any funded student organization alleged to be in violation of the above guidelines is subject to the suspension or loss of student activity fee funding after notice and an opportunity to be heard by Student Council. The Student Activities Committee is the next and final appeal body.

The Guidelines for Student Activities Fund Allocation apply to all student organization funding requests that are pending on, or are made after, January 31, 1991.

Attachment Definition of Terms

STUDENT ACTIVITY FEE FUNDING GUIDELINES ATTACHMENT DEFINITIONS OF TERMS

These definitions of terms are intended to provide clarification of the student activity fee fund guidelines. In those cases where further clarification is needed, Student Council and, if necessary, the Student Activities Committee will interpret the guidelines based on the facts presented and the Board of Visitors intent for the student activity fee.

Ability to Perform—a student organization may restrict membership based on ability to perform the activities related to the organization's purpose. For example, a student publication may make requirements based on writing skills. A club sport may restrict membership where selection is based on competitive skill or the activity involved is a contact sport thus resulting in a team of one or predominately one gender. Likewise, a choral group may restrict membership based on vocal range or quality which may also result in a chorus or choruses of one or predominantly one gender.

Co-curricular Organization—a group which provides opportunities outside the classroom setting for students to apply classroom theory and/or to acquire knowledge, experience and/or skills.

Cultural Organization—an organization which is primarily concerned with studying, promoting, and/or expressing racial, ethnic, or affinity group traditions, social forms, art, and/or tastes.

Hobby Organization—a group which primarily pursues an activity for relaxation, recreation, or entertainment.

Political Activity—an activity related to: (1) lobbying the principal purpose of which is to influence the passage or defeat of specific legislation; and/or (2) electioneering which encompasses participation or intervention in any political campaign on behalf of or in opposition to any candidate for public office. These restrictions on funding

political activities are not intended to preclude funding of any otherwise eligible student organization which: (1) advocates, as an incidental or insubstantial parts of its activities, the adoption or rejection of legislation; (2) engages in non-partisan analysis, study, or research, and makes the results available to the public; or (3) espouses particular positions or ideological viewpoints, including those that may be unpopular or are not generally accepted.

Political Organization—an organization primarily involved with influencing legislation, the administration of governmental policy, and/or the election of candidates for public office.

Religious Activity—an activity which primarily promotes or manifests a particular belief(s) in or about a deity or an ultimate reality.

Religious Organization—an organization whose purpose is to practice a devotion to an acknowledged ultimate reality or deity.

Student Activities Committee—the University faculty/student committee charged by the Vice President for Student Affairs to provide oversight to the student activity fee fund and its allocation by Student Council.

Special Status Student Organizations—Student organizations which have University delegated functions to perform are termed special status. These groups which include but are not limited to Student Council, school councils, University Guides, and University Singers have a University department or a school responsible for each group relative to the delegated functions.

Two groups, Student Council and WTJU, are charged by the Board of Visitors. The other Special Status Student Organizations receive their charge from a University department or school. Because of this relationship to a school or department and the concomitant funding available to the group, Special Status Student Organizations

not charged by the Board of Visitors are ineligible for student activity fee fund allocations.

Student Organizations Eligible for Funding—Contracted Independent Organizations which have been Student Council qualified and comply with the Student Council appropriations process guidelines as well as Special Status Student Organizations charged by the Board of Visitors are eligible for student activity fee funding. Currently, Student Council and WTJU are Special Status Student Organizations eligible for funding.